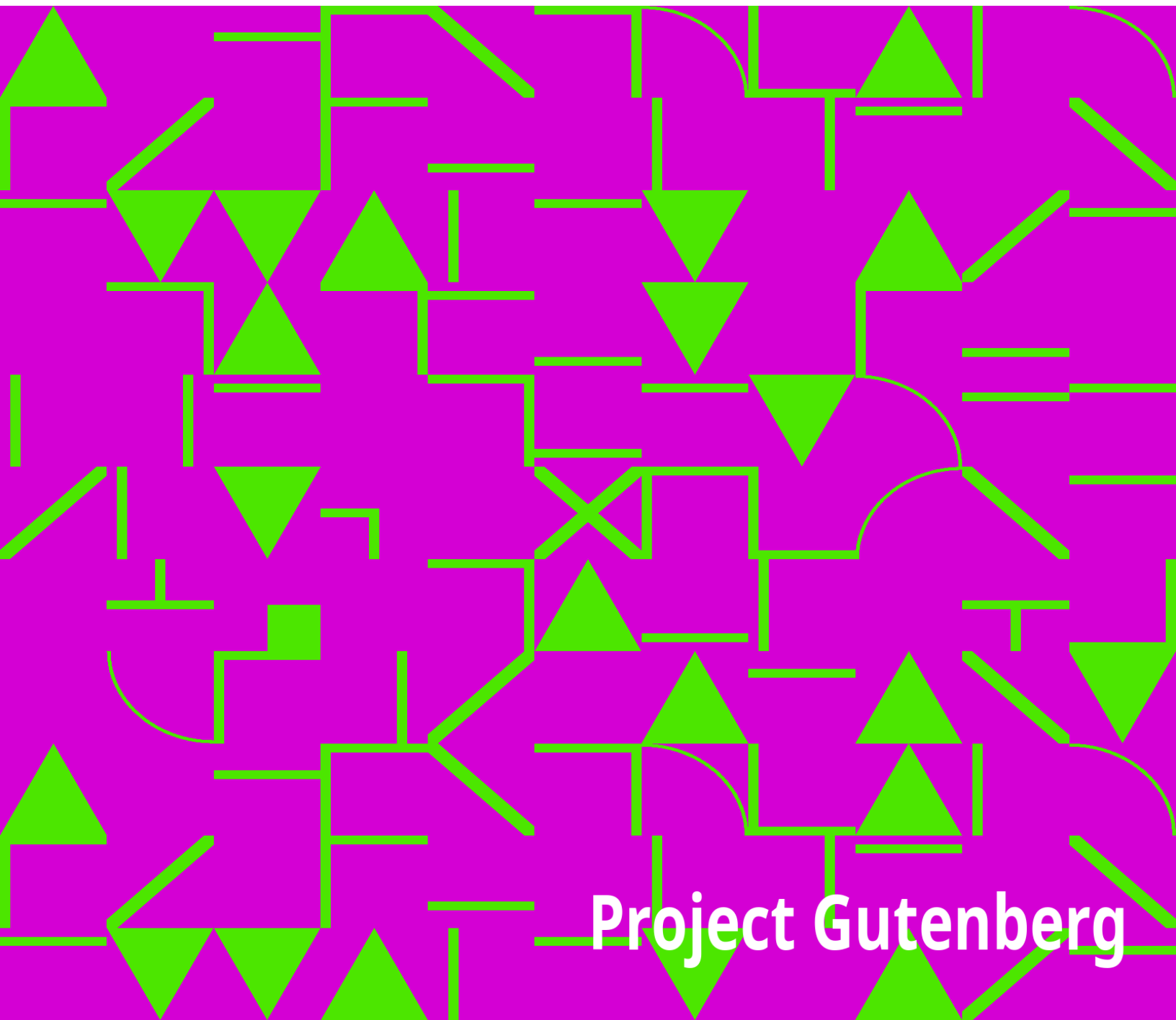


A Compilation of the Messages and Papers of the Presidents. Volume 1, part 2: John Adams

James D. Richardson



Project Gutenberg

**A Compilation of the Messages and Papers
of the Presidents. Volume 1, part 2: John
Adams**

James D. Richardson



Project Gutenberg

The Project Gutenberg eBook of A Compilation of the Messages and Papers of the Presidents. Volume 1, part 2: John Adams

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: A Compilation of the Messages and Papers of the Presidents. Volume 1, part 2: John Adams

Editor: James D. Richardson

Release date: January 1, 2004 [eBook #10894]

Most recently updated: October 28, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/10894

Credits: Produced by Juliet Sutherland, David Garcia and the Online Distributed Proofreading Team.

*** START OF THE PROJECT GUTENBERG EBOOK A
COMPILATION OF THE MESSAGES AND PAPERS OF THE
PRESIDENTS. VOLUME 1, PART 2: JOHN ADAMS ***

A COMPILATION OF THE MESSAGES AND PAPERS OF THE PRESIDENTS.

BY JAMES D. RICHARDSON

John Adams

March 4, 1797, to March 4, 1801

John Adams

John Adams was born on October 19 (old style), 1735, near Boston, Mass., in the portion of the town of Braintree which has since been incorporated as Quincy. He was fourth in descent from Henry Adams, who fled from persecution in Devonshire, England, and settled in Massachusetts about 1630. Another of his ancestors was John Adams, a founder of the Plymouth Colony in 1620. Entered Harvard College in 1751, and graduated therefrom four years later. Studied the law and taught school at Worcester; was admitted to the bar of Suffolk County in 1758. In 1768 removed to Boston, where he won distinction at the bar. In 1764 married Abigail Smith, whose father was Rev. William Smith and whose grandfather was Colonel Quincy. In 1770 was chosen a representative from Boston in the legislature of Massachusetts. In 1774 was a member of the Continental Congress, and in 1776 was the adviser and great supporter of the Declaration of Independence. The same year was a deputy to treat with Lord Howe for the pacification of the Colonies. He declined the offer of chief justice of Massachusetts. In December, 1777, was appointed a commissioner to France, and returned home in the summer of 1779. He was then chosen a member of the Massachusetts convention for framing a State constitution. On September 29, 1779, was appointed by Congress minister plenipotentiary to negotiate a peace treaty with Great Britain. In 1781 was a commissioner to conclude treaties of peace with European powers. In 1783 negotiated with others a commercial treaty with Great Britain. Was one of the commissioners to sign the provisional treaty of peace with that nation November 30, 1782, and the definite treaty September 3, 1783. In 1784 remained in Holland, and in 1785 was by Congress appointed minister of the United States at the Court of Great Britain. He returned to his home in June, 1788. Was chosen Vice-President on the ticket with Washington, and on the assembling of the Senate took his seat as President of that body, at New York in April, 1789. Was reelected Vice-President in 1792. On the retirement of Washington in 1796 he was elected President, and was inaugurated March 4, 1797. He retired March 4, 1801, to his home at Quincy, Mass. In 1816 was chosen to head the list of Presidential electors of

his party in the State. Was a member of the State convention to revise the constitution of Massachusetts; was unanimously elected president of that convention, but declined it on account of his age. His wife died in 1818. On July 4, 1826, he died, and was buried at Quincy.

INAUGURAL ADDRESS.

IN THE CITY OF PHILADELPHIA, PA

When it was first perceived, in early times, that no middle course for America remained between unlimited submission to a foreign legislature and a total independence of its claims, men of reflection were less apprehensive of danger from the formidable power of fleets and armies they must determine to resist than from those contests and dissensions which would certainly arise concerning the forms of government to be instituted over the whole and over the parts of this extensive country. Relying, however, on the purity of their intentions, the justice of their cause, and the integrity and intelligence of the people, under an overruling Providence which had so signally protected this country from the first, the representatives of this nation, then consisting of little more than half its present number, not only broke to pieces the chains which were forging and the rod of iron that was lifted up, but frankly cut asunder the ties which had bound them, and launched into an ocean of uncertainty.

The zeal and ardor of the people during the Revolutionary war, supplying the place of government, commanded a degree of order sufficient at least for the temporary preservation of society. The Confederation which was early felt to be necessary was prepared from the models of the Batavian and Helvetic confederacies, the only examples which remain with any detail and precision in history, and certainly the only ones which the people at large had ever considered. But reflecting on the striking difference in so many particulars between this country and those where a courier may go from the seat of government to the frontier in a single day, it was then certainly foreseen by some who assisted in Congress at the formation of it that it could not be durable.

Negligence of its regulations, inattention to its recommendations, if not disobedience to its authority, not only in individuals but in States, soon appeared with their melancholy consequences—universal languor, jealousies and rivalries of States, decline of navigation and commerce,

discouragement of necessary manufactures, universal fall in the value of lands and their produce, contempt of public and private faith, loss of consideration and credit with foreign nations, and at length in discontents, animosities, combinations, partial conventions, and insurrection, threatening some great national calamity.

In this dangerous crisis the people of America were not abandoned by their usual good sense, presence of mind, resolution, or integrity. Measures were pursued to concert a plan to form a more perfect union, establish justice, insure domestic tranquillity, provide for the common defense, promote the general welfare, and secure the blessings of liberty. The public disquisitions, discussions, and deliberations issued in the present happy Constitution of Government.

Employed in the service of my country abroad during the whole course of these transactions, I first saw the Constitution of the United States in a foreign country. Irritated by no literary altercation, animated by no public debate, heated by no party animosity, I read it with great satisfaction, as the result of good heads prompted by good hearts, as an experiment better adapted to the genius, character, situation, and relations of this nation and country than any which had ever been proposed or suggested. In its general principles and great outlines it was conformable to such a system of government as I had ever most esteemed, and in some States, my own native State in particular, had contributed to establish. Claiming a right of suffrage, in common with my fellow-citizens, in the adoption or rejection of a constitution which was to rule me and my posterity, as well as them and theirs, I did not hesitate to express my approbation of it on all occasions, in public and in private. It was not then, nor has been since, any objection to it in my mind that the Executive and Senate were not more permanent. Nor have I ever entertained a thought of promoting any alteration in it but such as the people themselves, in the course of their experience, should see and feel to be necessary or expedient, and by their representatives in Congress and the State legislatures, according to the Constitution itself, adopt and ordain.

Returning to the bosom of my country after a painful separation from it for ten years, I had the honor to be elected to a station under the new order of things, and I have repeatedly laid myself under the most serious

obligations to support the Constitution. The operation of it has equaled the most sanguine expectations of its friends, and from an habitual attention to it, satisfaction in its administration, and delight in its effects upon the peace, order, prosperity, and happiness of the nation I have acquired an habitual attachment to it and veneration for it.

What other form of government, indeed, can so well deserve our esteem and love?

There may be little solidity in an ancient idea that congregations of men into cities and nations are the most pleasing objects in the sight of superior intelligences, but this is very certain, that to a benevolent human mind there can be no spectacle presented by any nation more pleasing, more noble, majestic, or august, than an assembly like that which has so often been seen in this and the other Chamber of Congress, of a Government in which the Executive authority, as well as that of all the branches of the Legislature, are exercised by citizens selected at regular periods by their neighbors to make and execute laws for the general good. Can anything essential, anything more than mere ornament and decoration, be added to this by robes and diamonds? Can authority be more amiable and respectable when it descends from accidents or institutions established in remote antiquity than when it springs fresh from the hearts and judgments of an honest and enlightened people? For it is the people only that are represented. It is their power and majesty that is reflected, and only for their good, in every legitimate government, under whatever form it may appear. The existence of such a government as ours for any length of time is a full proof of a general dissemination of knowledge and virtue throughout the whole body of the people. And what object or consideration more pleasing than this can be presented to the human mind? If national pride is ever justifiable or excusable it is when it springs, not from power or riches, grandeur or glory, but from conviction of national innocence, information, and benevolence.

In the midst of these pleasing ideas we should be unfaithful to ourselves if we should ever lose sight of the danger to our liberties if anything partial or extraneous should infect the purity of our free, fair, virtuous, and independent elections. If an election is to be determined by a majority of a single vote, and that can be procured by a party through artifice or corruption, the Government may be the choice of a party for its own ends,

not of the nation for the national good. If that solitary suffrage can be obtained by foreign nations by flattery or menaces, by fraud or violence, by terror, intrigue, or venality, the Government may not be the choice of the American people, but of foreign nations. It may be foreign nations who govern us, and not we, the people, who govern ourselves; and candid men will acknowledge that in such cases choice would have little advantage to boast of over lot or chance.

Such is the amiable and interesting system of government (and such are some of the abuses to which it may be exposed) which the people of America have exhibited to the admiration and anxiety of the wise and virtuous of all nations for eight years under the administration of a citizen who, by a long course of great actions, regulated by prudence, justice, temperance, and fortitude, conducting a people inspired with the same virtues and animated with the same ardent patriotism and love of liberty to independence and peace, to increasing wealth and unexampled prosperity, has merited the gratitude of his fellow-citizens, commanded the highest praises of foreign nations, and secured immortal glory with posterity.

In that retirement which is his voluntary choice may he long live to enjoy the delicious recollection of his services, the gratitude of mankind, the happy fruits of them to himself and the world, which are daily increasing, and that splendid prospect of the future fortunes of this country which is opening from year to year. His name may be still a rampart, and the knowledge that he lives a bulwark, against all open or secret enemies of his country's peace. This example has been recommended to the imitation of his successors by both Houses of Congress and by the voice of the legislatures and the people throughout the nation.

On this subject it might become me better to be silent or to speak with diffidence; but as something may be expected, the occasion, I hope, will be admitted as an apology if I venture to say that if a preference, upon principle, of a free republican government, formed upon long and serious reflection, after a diligent and impartial inquiry after truth; if an attachment to the Constitution of the United States, and a conscientious determination to support it until it shall be altered by the judgments and wishes of the people, expressed in the mode prescribed in it; if a respectful attention to the constitutions of the individual States and a constant caution and delicacy

toward the State governments; if an equal and impartial regard to the rights, interest, honor, and happiness of all the States in the Union, without preference or regard to a northern or southern, an eastern or western, position, their various political opinions on unessential points or their personal attachments; if a love of virtuous men of all parties and denominations; if a love of science and letters and a wish to patronize every rational effort to encourage schools, colleges, universities, academies, and every institution for propagating knowledge, virtue, and religion among all classes of the people, not only for their benign influence on the happiness of life in all its stages and classes, and of society in all its forms, but as the only means of preserving our Constitution from its natural enemies, the spirit of sophistry, the spirit of party, the spirit of intrigue, the profligacy of corruption, and the pestilence of foreign influence, which is the angel of destruction to elective governments; if a love of equal laws, of justice, and humanity in the interior administration; if an inclination to improve agriculture, commerce, and manufactures for necessity, convenience, and defense; if a spirit of equity and humanity toward the aboriginal nations of America, and a disposition to meliorate their condition by inclining them to be more friendly to us, and our citizens to be more friendly to them; if an inflexible determination to maintain peace and inviolable faith with all nations, and that system of neutrality and impartiality among the belligerent powers of Europe which has been adopted by this Government and so solemnly sanctioned by both Houses of Congress and applauded by the legislatures of the States and the public opinion, until it shall be otherwise ordained by Congress; if a personal esteem for the French nation, formed in a residence of seven years chiefly among them, and a sincere desire to preserve the friendship which has been so much for the honor and interest of both nations; if, while the conscious honor and integrity of the people of America and the internal sentiment of their own power and energies must be preserved, an earnest endeavor to investigate every just cause and remove every colorable pretense of complaint; if an intention to pursue by amicable negotiation a reparation for the injuries that have been committed on the commerce of our fellow-citizens by whatever nation, and if success can not be obtained, to lay the facts before the legislature, that they may consider what further measures the honor and interest of the Government and its constituents demand; if a resolution to do justice as far as may depend upon me, at all times and to all nations, and maintain peace,

friendship, and benevolence with all the world; if an unshaken confidence in the honor, spirit, and resources of the American people, on which I have so often hazarded my all and never been deceived; if elevated ideas of the high destinies of this country and of my own duties toward it, founded on a knowledge of the moral principles and intellectual improvements of the people deeply engraven on my mind in early life, and not obscured but exalted by experience and age; and, with humble reverence, I feel it to be my duty to add, if a veneration for the religion of a people who profess and call themselves Christians, and a fixed resolution to consider a decent respect for Christianity among the best recommendations for the public service, can enable me in any degree to comply with your wishes, it shall be my strenuous endeavor that this sagacious injunction of the two Houses shall not be without effect.

With this great example before me, with the sense and spirit, the faith and honor, the duty and interest, of the same American people pledged to support the Constitution of the United States, I entertain no doubt of its continuance in all its energy, and my mind is prepared without hesitation to lay myself under the most solemn obligations to support it to the utmost of my power.

And may that Being who is supreme over all, the Patron of Order, the Fountain of Justice, and the Protector in all ages of the world of virtuous liberty, continue His blessing upon this nation and its Government and give it all possible success and duration consistent with the ends of His providence.

March 4, 1797.

PROCLAMATION.

[From Annals of Congress, Fifth Congress, Vol. I, 49.]

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA.

A PROCLAMATION.

Whereas the Constitution of the United States of America provides that the President may, on extraordinary occasions, convene both Houses of Congress; and

Whereas an extraordinary occasion exists for convening Congress, and divers weighty matters claim their consideration:

I have therefore thought it necessary to convene, and I do by these presents convene, the Congress of the United States of America at the city of Philadelphia, in the Commonwealth of Pennsylvania, on Monday, the 15th day of May next, hereby requiring the Senators and Representatives in the Congress of the United States of America, and every of them, that, laying aside all other matters and cares, they then and there meet and assemble in Congress in order to consult and determine on such measures as in their wisdom shall be deemed meet for the safety and welfare of the said United States.

In testimony whereof I have caused the seal of the United States of America to be affixed to these presents, and signed the same with my hand.

[SEAL.]

Done at the city of Philadelphia, the 25th day of March, A.D. 1797, and of the Independence of the United States of America the twenty-first.

JOHN ADAMS.

By the President:
TIMOTHY PICKERING,
Secretary of State.

SPECIAL SESSION MESSAGE.

UNITED STATES, *May 16, 1797.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

The personal inconveniences to the members of the Senate and of the House of Representatives in leaving their families and private affairs at this season of the year are so obvious that I the more regret the extraordinary occasion which has rendered the convention of Congress indispensable.

It would have afforded me the highest satisfaction to have been able to congratulate you on a restoration of peace to the nations of Europe whose animosities have endangered our tranquillity; but we have still abundant cause of gratitude to the Supreme Dispenser of National Blessings for general health and promising seasons, for domestic and social happiness, for the rapid progress and ample acquisitions of industry through extensive territories, for civil, political, and religious liberty. While other states are desolated with foreign war or convulsed with intestine divisions, the United States present the pleasing prospect of a nation governed by mild and equal laws, generally satisfied with the possession of their rights, neither envying the advantages nor fearing the power of other nations, solicitous only for the maintenance of order and justice and the preservation of liberty, increasing daily in their attachment to a system of government in proportion to their experience of its utility, yielding a ready and general obedience to laws flowing from the reason and resting on the only solid foundation—the affections of the people.

It is with extreme regret that I shall be obliged to turn your thoughts to other circumstances, which admonish us that some of these felicities may not be lasting. But if the tide of our prosperity is full and a reflux commencing, a vigilant circumspection becomes us, that we may meet our reverses with fortitude and extricate ourselves from their consequences with all the skill we possess and all the efforts in our power.

In giving to Congress information of the state of the Union and recommending to their consideration such measures as appear to me to be necessary or expedient, according to my constitutional duty, the causes and the objects of the present extraordinary session will be explained.

After the President of the United States received information that the French Government had expressed serious discontents at some proceedings of the Government of these States said to affect the interests of France, he thought it expedient to send to that country a new minister, fully instructed to enter on such amicable discussions and to give such candid explanations as might happily remove the discontents and suspicions of the French Government and vindicate the conduct of the United States. For this purpose he selected from among his fellow-citizens a character whose integrity, talents, experience, and services had placed him in the rank of the most esteemed and respected in the nation. The direct object of his mission was expressed in his letter of credence to the French Republic, being "to maintain that good understanding which from the commencement of the alliance had subsisted between the two nations, and to efface unfavorable impressions, banish suspicions, and restore that cordiality which was at once the evidence and pledge of a friendly union." And his instructions were to the same effect, "faithfully to represent the disposition of the Government and people of the United States (their disposition being one), to remove jealousies and obviate complaints by shewing that they were groundless, to restore that mutual confidence which had been so unfortunately and injuriously impaired, and to explain the relative interests of both countries and the real sentiments of his own."

A minister thus specially commissioned it was expected would have proved the instrument of restoring mutual confidence between the two Republics. The first step of the French Government corresponded with that expectation. A few days before his arrival at Paris the French minister of foreign relations informed the American minister then resident at Paris of the formalities to be observed by himself in taking leave, and by his successor preparatory to his reception. These formalities they observed, and on the 9th of December presented officially to the minister of foreign relations, the one a copy of his letters of recall, the other a copy of his letters of credence.

These were laid before the Executive Directory. Two days afterwards the minister of foreign relations informed the recalled American minister that the Executive Directory had determined not to receive another minister plenipotentiary from the United States until after the redress of grievances demanded of the American Government, and which the French Republic had a right to expect from it. The American minister immediately endeavored to ascertain whether by refusing to receive him it was intended that he should retire from the territories of the French Republic, and verbal answers were given that such was the intention of the Directory. For his own justification he desired a written answer, but obtained none until toward the last of January, when, receiving notice in writing to quit the territories of the Republic, he proceeded to Amsterdam, where he proposed to wait for instruction from this Government. During his residence at Paris cards of hospitality were refused him, and he was threatened with being subjected to the jurisdiction of the minister of police; but with becoming firmness he insisted on the protection of the law of nations due to him as the known minister of a foreign power. You will derive further information from his dispatches, which will be laid before you.

As it is often necessary that nations should treat for the mutual advantage of their affairs, and especially to accommodate and terminate differences, and as they can treat only by ministers, the right of embassy is well known and established by the law and usage of nations. The refusal on the part of France to receive our minister is, then, the denial of a right; but the refusal to receive him until we have acceded to their demands without discussion and without investigation is to treat us neither as allies nor as friends, nor as a sovereign state.

With this conduct of the French Government it will be proper to take into view the public audience given to the late minister of the United States on his taking leave of the Executive Directory. The speech of the President discloses sentiments more alarming than the refusal of a minister, because more dangerous to our independence and union, and at the same time studiously marked with indignities toward the Government of the United States. It evinces a disposition to separate the people of the United States from the Government, to persuade them that they have different affections, principles, and interests from those of their fellow-citizens whom they themselves have chosen to manage their common concerns, and thus to

produce divisions fatal to our peace. Such attempts ought to be repelled with a decision which shall convince France and the world that we are not a degraded people, humiliated under a colonial spirit of fear and sense of inferiority, fitted to be the miserable instruments of foreign influence, and regardless of national honor, character, and interest.

I should have been happy to have thrown a veil over these transactions if it had been possible to conceal them; but they have passed on the great theater of the world, in the face of all Europe and America, and with such circumstances of publicity and solemnity that they can not be disguised and will not soon be forgotten. They have inflicted a wound in the American breast. It is my sincere desire, however, that it may be healed.

It is my sincere desire, and in this I presume I concur with you and with our constituents, to preserve peace and friendship with all nations; and believing that neither the honor nor the interest of the United States absolutely forbid the repetition of advances for securing these desirable objects with France, I shall institute a fresh attempt at negotiation, and shall not fail to promote and accelerate an accommodation on terms compatible with the rights, duties, interests, and honor of the nation. If we have committed errors, and these can be demonstrated, we shall be willing to correct them; if we have done injuries, we shall be willing on conviction to redress them; and equal measures of justice we have a right to expect from France and every other nation.

The diplomatic intercourse between the United States and France being at present suspended, the Government has no means of obtaining official information from that country. Nevertheless, there is reason to believe that the Executive Directory passed a decree on the 2d of March last contravening in part the treaty of amity and commerce of 1778, injurious to our lawful commerce and endangering the lives of our citizens. A copy of this decree will be laid before you.

While we are endeavoring to adjust all our differences with France by amicable negotiation, the progress of the war in Europe, the depredations on our commerce, the personal injuries to our citizens, and the general complexion of affairs render it my indispensable duty to recommend to your consideration effectual measures of defense.

The commerce of the United States has become an interesting object of attention, whether we consider it in relation to the wealth and finances or the strength and resources of the nation. With a seacoast of near 2,000 miles in extent, opening a wide field for fisheries, navigation, and commerce, a great portion of our citizens naturally apply their industry and enterprise to these objects. Any serious and permanent injury to commerce would not fail to produce the most embarrassing disorders. To prevent it from being undermined and destroyed it is essential that it receive an adequate protection.

The naval establishment must occur to every man who considers the injuries committed on our commerce, the insults offered to our citizens, and the description of vessels by which these abuses have been practiced. As the sufferings of our mercantile and seafaring citizens can not be ascribed to the omission of duties demandable, considering the neutral situation of our country, they are to be attributed to the hope of impunity arising from a supposed inability on our part to afford protection. To resist the consequences of such impressions on the minds of foreign nations and to guard against the degradation and servility which they must finally stamp on the American character is an important duty of Government.

A naval power, next to the militia, is the natural defense of the United States. The experience of the last war would be sufficient to shew that a moderate naval force, such as would be easily within the present abilities of the Union, would have been sufficient to have baffled many formidable transportations of troops from one State to another, which were then practiced. Our seacoasts, from their great extent, are more easily annoyed and more easily defended by a naval force than any other. With all the materials our country abounds; in skill our naval architects and navigators are equal to any, and commanders and seamen will not be wanting.

But although the establishment of a permanent system of naval defense appears to be requisite, I am sensible it can not be formed so speedily and extensively as the present crisis demands. Hitherto I have thought proper to prevent the sailing of armed vessels except on voyages to the East Indies, where general usage and the danger from pirates appeared to render the permission proper. Yet the restriction has originated solely from a wish to prevent collisions with the powers at war, contravening the act of Congress

of June, 1794, and not from any doubt entertained by me of the policy and propriety of permitting our vessels to employ means of defense while engaged in a lawful foreign commerce. It remains for Congress to prescribe such regulations as will enable our seafaring citizens to defend themselves against violations of the law of nations, and at the same time restrain them from committing acts of hostility against the powers at war. In addition to this voluntary provision for defense by individual citizens, it appears to me necessary to equip the frigates, and provide other vessels of inferior force, to take under convoy such merchant vessels as shall remain unarmed.

The greater part of the cruisers whose depredations have been most injurious have been built and some of them partially equipped in the United States. Although an effectual remedy may be attended with difficulty, yet I have thought it my duty to present the subject generally to your consideration. If a mode can be devised by the wisdom of Congress to prevent the resources of the United States from being converted into the means of annoying our trade, a great evil will be prevented. With the same view, I think it proper to mention that some of our citizens resident abroad have fitted out privateers, and others have voluntarily taken the command, or entered on board of them, and committed spoliations on the commerce of the United States. Such unnatural and iniquitous practices can be restrained only by severe punishments.

But besides a protection of our commerce on the seas, I think it highly necessary to protect it at home, where it is collected in our most important ports. The distance of the United States from Europe and the well-known promptitude, ardor, and courage of the people in defense of their country happily diminish the probability of invasion. Nevertheless, to guard against sudden and predatory incursions the situation of some of our principal seaports demands your consideration. And as our country is vulnerable in other interests besides those of its commerce, you will seriously deliberate whether the means of general defense ought not to be increased by an addition to the regular artillery and cavalry, and by arrangements for forming a provisional army.

With the same view, and as a measure which, even in a time of universal peace, ought not to be neglected, I recommend to your consideration a

revision of the laws for organizing, arming, and disciplining the militia, to render that natural and safe defense of the country efficacious.

Although it is very true that we ought not to involve ourselves in the political system of Europe, but to keep ourselves always distinct and separate from it if we can, yet to effect this separation, early, punctual, and continual information of the current chain of events and of the political projects in contemplation is no less necessary than if we were directly concerned in them. It is necessary, in order to the discovery of the efforts made to draw us into the vortex, in season to make preparations against them. However we may consider ourselves, the maritime and commercial powers of the world will consider the United States of America as forming a weight in that balance of power in Europe which never can be forgotten or neglected. It would not only be against our interest, but it would be doing wrong to one-half of Europe, at least, if we should voluntarily throw ourselves into either scale. It is a natural policy for a nation that studies to be neutral to consult with other nations engaged in the same studies and pursuits. At the same time that measures might be pursued with this view, our treaties with Prussia and Sweden, one of which is expired and the other near expiring, might be renewed.

Gentlemen of the House of Representatives:

It is particularly your province to consider the state of the public finances, and to adopt such measures respecting them as exigencies shall be found to require. The preservation of public credit, the regular extinguishment of the public debt, and a provision of funds to defray any extraordinary expenses will of course call for your serious attention. Although the imposition of new burthens can not be in itself agreeable, yet there is no ground to doubt that the American people will expect from you such measures as their actual engagements, their present security, and future interests demand.

Gentlemen of the Senate and Gentlemen of the House of Representatives:

The present situation of our country imposes an obligation on all the departments of Government to adopt an explicit and decided conduct. In my situation an exposition of the principles by which my Administration will be governed ought not to be omitted.

It is impossible to conceal from ourselves or the world what has been before observed, that endeavors have been employed to foster and establish a division between the Government and people of the United States. To investigate the causes which have encouraged this attempt is not necessary; but to repel, by decided and united councils, insinuations so derogatory to the honor and aggressions so dangerous to the Constitution, union, and even independence of the nation is an indispensable duty.

It must not be permitted to be doubted whether the people of the United States will support the Government established by their voluntary consent and appointed by their free choice, or whether, by surrendering themselves to the direction of foreign and domestic factions, in opposition to their own Government, they will forfeit the honorable station they have hitherto maintained.

For myself, having never been indifferent to what concerned the interests of my country, devoted the best part of my life to obtain and support its independence, and constantly witnessed the patriotism, fidelity, and perseverance of my fellow-citizens on the most trying occasions, it is not for me to hesitate or abandon a cause in which my heart has been so long engaged.

Convinced that the conduct of the Government has been just and impartial to foreign nations, that those internal regulations which have been established by law for the preservation of peace are in their nature proper, and that they have been fairly executed, nothing will ever be done by me to impair the national engagements, to innovate upon principles which have been so deliberately and uprightly established, or to surrender in any manner the rights of the Government. To enable me to maintain this declaration I rely, under God, with entire confidence on the firm and enlightened support of the National Legislature and upon the virtue and patriotism of my fellow-citizens.

JOHN ADAMS.

ADDRESS OF THE SENATE TO JOHN ADAMS, PRESIDENT OF THE UNITED STATES

SIR: The Senate of the United States request you to accept their acknowledgments for the comprehensive and interesting detail you have given in your speech to both Houses of Congress on the existing state of the Union.

While we regret the necessity of the present meeting of the Legislature, we wish to express our entire approbation of your conduct in convening it on this momentous occasion.

The superintendence of our national faith, honor, and dignity being in a great measure constitutionally deposited with the Executive, we observe with singular satisfaction the vigilance, firmness, and promptitude exhibited by you in this critical state of our public affairs, and from thence derive an evidence and pledge of the rectitude and integrity of your Administration. And we are sensible it is an object of primary importance that each branch of the Government should adopt a language and system of conduct which shall be cool, just, and dispassionate, but firm, explicit, and decided.

We are equally desirous with you to preserve peace and friendship with all nations, and are happy to be informed that neither the honor nor interests of the United States forbid advances for securing those desirable objects by amicable negotiation with the French Republic. This method of adjusting national differences is not only the most mild, but the most rational and humane, and with governments disposed to be just can seldom fail of success when fairly, candidly, and sincerely used.

If we have committed errors and can be made sensible of them, we agree with you in opinion that we ought to correct them, and compensate the injuries which may have been consequent thereon; and we trust the French Republic will be actuated by the same just and benevolent principles of national policy.

We do therefore most sincerely approve of your determination to promote and accelerate an accommodation of our existing differences with that Republic by negotiation, on terms compatible with the rights, duties,

interests, and honor of our nation. And you may rest assured of our most cordial cooperation so far as it may become necessary in this pursuit.

Peace and harmony with all nations is our sincere wish; but such being the lot of humanity that nations will not always reciprocate peaceable dispositions, it is our firm belief that effectual measures of defense will tend to inspire that national self-respect and confidence at *home* which is the unfailing source of respectability *abroad*, to check aggression and prevent war.

While we are endeavoring to adjust our differences with the French Republic by amicable negotiation, the progress of the war in Europe, the depredations on our commerce, the personal injuries to our citizens, and the general complexion of affairs prove to us your vigilant care in recommending to our attention effectual measures of defense.

Those which you recommend, whether they relate to external defense by permitting our citizens to arm for the purpose of repelling aggressions on their commercial rights, and by providing sea convoys, or to internal defense by increasing the establishments of artillery and cavalry, by forming a provisional army, by revising the militia laws, and fortifying more completely our ports and harbors, will meet our consideration under the influence of the same just regard for the security, interest, and honor of our country which dictated your recommendation.

Practices so unnatural and iniquitous as those you state, of our own citizens converting their property and personal exertions into the means of annoying our trade and injuring their fellow-citizens, deserve legal severity commensurate with their turpitude.

Although the Senate believe that the prosperity and happiness of our country does not depend on general and extensive political connections with European nations, yet we can never lose sight of the propriety as well as necessity of enabling the Executive, by sufficient and liberal supplies, to maintain and even extend our foreign intercourse as exigencies may require, reposing full confidence in the Executive, in whom the Constitution has placed the powers of negotiation.

We learn with sincere concern that attempts are in operation to alienate the affections of our fellow-citizens from their Government. Attempts so wicked, wherever they exist, can not fail to excite our utmost abhorrence. A government chosen by the people for their own safety and happiness, and calculated to secure both, can not lose their affections so long as its administration pursues the principles upon which it was erected; and your resolution to observe a conduct just and impartial to all nations, a sacred regard to our national engagements, and not to impair the rights of our Government, contains principles which can not fail to secure to your Administration the support of the National Legislature to render abortive every attempt to excite dangerous jealousies among us, and to convince the world that our Government and your administration of it can not be separated from the affectionate support of every good citizen. And the Senate can not suffer the present occasion to pass without thus publicly and solemnly expressing their attachment to the Constitution and Government of their country; and as they hold themselves responsible to their constituents, their consciences, and their God, it is their determination by all their exertions to repel every attempt to alienate the affections of the people from the Government, so highly injurious to the honor, safety, and independence of the United States.

We are happy, since our sentiments on the subject are in perfect unison with yours, in this public manner to declare that we believe the conduct of the Government has been just and impartial to foreign nations, and that those internal regulations which have been established for the preservation of peace are in their nature proper and have been fairly executed.

And we are equally happy in possessing an entire confidence in your abilities and exertions in your station to maintain untarnished the honor, preserve the peace, and support the independence of our country, to acquire and establish which, in connection with your fellow-citizens, has been the virtuous effort of a principal part of your life.

To aid you in these arduous and honorable exertions, as it is our duty so it shall be our faithful endeavor; and we flatter ourselves, sir, that the proceedings of the present session of Congress will manifest to the world that although the United States love peace, they will be independent; that

they are sincere in their declarations to be just to the French and all other nations, and expect the same in return.

If a sense of justice, a love of moderation and peace, shall influence their councils, which we sincerely hope we shall have just grounds to expect, peace and amity between the United States and all nations will be preserved.

But if we are so unfortunate as to experience injuries from any foreign power, and the ordinary methods by which differences are amicably adjusted between nations shall be rejected, the determination "not to surrender in any manner the rights of the Government," being so inseparably connected with the dignity, interest, and independence of our country, shall by us be steadily and inviolably supported.

TH: JEFFERSON,
Vice-President of the United States and President of the Senate.

MAY 23, 1797.

REPLY OF THE PRESIDENT.

Mr. Vice-President and Gentlemen of the Senate:

It would be an affectation in me to dissemble the pleasure I feel on receiving this kind address.

My long experience of the wisdom, fortitude, and patriotism of the Senate of the United States enhances in my estimation the value of those obliging expressions of your approbation of my conduct, which are a generous reward for the past and an affecting encouragement to constancy and perseverance in future.

Our sentiments appear to be so entirely in unison that I can not but believe them to be the rational result of the understandings and the natural

feelings of the hearts of Americans in general on contemplating the present state of the nation.

While such principles and affections prevail they will form an indissoluble bond of union and a sure pledge that our country has no essential injury to apprehend from any portentous appearances abroad. In a humble reliance on Divine Providence we may rest assured that while we reiterate with sincerity our endeavors to accommodate all our differences with France, the independence of our country can not be diminished, its dignity degraded, or its glory tarnished by any nation or combination of nations, whether friends or enemies.

JOHN ADAMS.

MAY 24, 1797.

ADDRESS OF THE HOUSE OF REPRESENTATIVES TO JOHN ADAMS, PRESIDENT OF THE UNITED STATES.

SIR: The interesting details of those events which have rendered the convention of Congress at this time indispensable (communicated in your speech to both Houses) has excited in us the strongest emotions. Whilst we regret the occasion, we can not omit to testify our approbation of the measure, and pledge ourselves that no considerations of private inconvenience shall prevent on our part a faithful discharge of the duties to which we are called.

We have constantly hoped that the nations of Europe, whilst desolated by foreign wars or convulsed by intestine divisions, would have left the United States to enjoy that peace and tranquillity to which the impartial conduct of our Government has entitled us, and it is now with extreme regret we find the measures of the French Republic tending to endanger a situation so desirable and interesting to our country.

Upon this occasion we feel it our duty to express in the most explicit manner the sensations which the present crisis has excited, and to assure you of our zealous cooperation in those measures which may appear necessary for our security or peace.

Although it is the earnest wish of our hearts that peace may be maintained with the French Republic and with all the world, yet we never will surrender those rights which belong to us as a nation; and whilst we view with satisfaction the wisdom, dignity, and moderation which have marked the measures of the Supreme Executive of our country in his attempt to remove by candid explanations the complaints and jealousies of France, we feel the full force of that indignity which has been offered our country in the rejection of its minister. No attempts to wound our rights as a sovereign State will escape the notice of our constituents. They will be felt with indignation and repelled with that decision which shall convince the world that we are not a degraded people; that we can never submit to the demands of a foreign power without examination and without discussion.

Knowing as we do the confidence reposed by the people of the United States in their Government, we can not hesitate in expressing our indignation at any sentiments tending to derogate from that confidence. Such sentiments, wherever entertained, serve to evince an imperfect knowledge of the opinions of our constituents. An attempt to separate the people of the United States from their Government is an attempt to separate them from themselves; and although foreigners who know not the genius of our country may have conceived the project, and foreign emissaries may attempt the execution, yet the united efforts of our fellow-citizens will convince the world of its impracticability.

Sensibly as we feel the wound which has been inflicted by the transactions disclosed in your communications, yet we think with you that neither the honor nor the interest of the United States forbid the repetition of advances for preserving peace; we therefore receive with the utmost satisfaction your information that a fresh attempt at negotiation will be instituted, and we cherish the hope that a mutual spirit of conciliation, and a disposition on the part of France to compensate for any injuries which may have been committed upon our neutral rights, and on the part of the United States to place France on grounds similar to those of other countries in their

relation and connection with us (if any inequalities shall be found to exist), will produce an accommodation compatible with the engagements, rights, duties, and honor of the United States. Fully, however, impressed with the uncertainty of the result, we shall prepare to meet with fortitude any unfavorable events which may occur, and to extricate ourselves from their consequences with all the skill we possess and all the efforts in our power. Believing with you that the conduct of the Government has been just and impartial to foreign nations, that the laws for the preservation of peace have been proper, and that they have been fairly executed, the Representatives of the people do not hesitate to declare that they will give their most cordial support to the execution of principles so deliberately and uprightly established.

The many interesting subjects which you have recommended to our consideration, and which are so strongly enforced by this momentous occasion, will receive every attention which their importance demands, and we trust that, by the decided and explicit conduct which will govern our deliberations, every insinuation will be repelled which is derogatory to the honor and independence of our country.

Permit us in offering this address to express our satisfaction at your promotion to the first office in the Government and our entire confidence that the preeminent talents and patriotism which have placed you in this distinguished situation will enable you to discharge its various duties with satisfaction to yourself and advantage to our common country.

JUNE 2, 1797.

REPLY OF THE PRESIDENT.

Mr. Speaker and Gentlemen of the House of Representatives:

I receive with great satisfaction your candid approbation of the convention of Congress, and thank you for your assurances that the interesting subjects recommended to your consideration shall receive the

attention which their importance demands, and that your cooperation may be expected in those measures which may appear necessary for our security or peace.

The declarations of the Representatives of this nation of their satisfaction at my promotion to the first office in this Government and of their confidence in my sincere endeavors to discharge the various duties of it with advantage to our common country have excited my most grateful sensibility.

I pray you, gentlemen, to believe and to communicate such assurance to our constituents that no event which I can foresee to be attainable by any exertions in the discharge of my duties can afford me so much cordial satisfaction as to conduct a negotiation with the French Republic to a removal of prejudices, a correction of errors, a dissipation of umbrages, an accommodation of all differences, and a restoration of harmony and affection to the mutual satisfaction of both nations. And whenever the legitimate organs of intercourse shall be restored and the real sentiments of the two Governments can be candidly communicated to each other, although strongly impressed with the necessity of collecting ourselves into a manly posture of defense, I nevertheless entertain an encouraging confidence that a mutual spirit of conciliation, a disposition to compensate injuries and accommodate each other in all our relations and connections, will produce an agreement to a treaty consistent with the engagements, rights, duties, and honor of both nations.

JOHN ADAMS.

JUNE 3, 1797.

SPECIAL MESSAGES.

UNITED STATES, *May 26, 1797.*

Gentlemen of the Senate:

I lay before you, for your consideration and advice, a treaty of perpetual peace and friendship between the United States of America and the Bey and subjects of Tripoli, of Barbary, concluded at Tripoli on the 4th day of November, 1796.

JOHN ADAMS.

UNITED STATES, *May 31, 1797.*

Gentlemen of the Senate:

I nominate General Charles Cotesworth Pinckney, of South Carolina, Francis Dana, chief justice of the State of Massachusetts, and General John Marshall, of Virginia, to be jointly and severally envoys extraordinary and ministers plenipotentiary to the French Republic.

After mature deliberation on the critical situation of our relations with France, which have long engaged my most serious attention, I have determined on these nominations of persons to negotiate with the French Republic to dissipate umbrages, to remove prejudices, to rectify errors, and adjust all differences by a treaty between the two powers.

It is in the present critical and singular circumstances of great importance to engage the confidence of the great portions of the Union in the characters employed and the measures which may be adopted. I have therefore thought it expedient to nominate persons of talents and integrity, long known and intrusted in the three great divisions of the Union, and at the same time, to

provide against the cases of death, absence, indisposition, or other impediment, to invest any one or more of them with full powers.

JOHN ADAMS.

UNITED STATES, *June 12, 1797.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

I have received information from the commissioner appointed on the part of the United States, pursuant to the third article of our treaty with Spain, that the running and marking of the boundary line between the colonies of East and West Florida and the territory of the United States have been delayed by the officers of His Catholic Majesty, and that they have declared their intention to maintain his jurisdiction, and to suspend the withdrawing his troops from the military posts they occupy within the territory of the United States until the two Governments shall, by negotiation, have settled the meaning of the second article respecting the withdrawing of the troops, garrisons, or settlements of either party in the territory of the other—that is, whether, when the Spanish garrisons withdraw, they are to leave the works standing or to demolish them—and until, by an additional article to the treaty, the real property of the inhabitants shall be secured, and, likewise, until the Spanish officers are sure the Indians will be pacific. The two first questions, if to be determined by negotiation, might be made subjects of discussion for years, and as no limitation of time can be prescribed to the other, a certainty in the opinion of the Spanish officers that the Indians will be pacific, it will be impossible to suffer it to remain an obstacle to the fulfillment of the treaty on the part of Spain.

To remove the first difficulty, I have determined to leave it to the discretion of the officers of His Catholic Majesty when they withdraw his troops from the forts within the territory of the United States, either to leave the works standing or to demolish them; and to remove the second I shall cause an assurance to be published and to be particularly communicated to the minister of His Catholic Majesty and to the governor of Louisiana that the settlers or occupants of the lands in question shall not be disturbed in

their possessions by the troops of the United States, but, on the contrary, that they shall be protected in all their lawful claims; and to prevent or remove every doubt on this point it merits the consideration of Congress whether it will not be expedient immediately to pass a law giving positive assurances to those inhabitants who, by fair and regular grants or by occupancy, have obtained legal titles or equitable claims to lands in that country prior to the final ratification of the treaty between the United States and Spain on the 25th of April, 1796.

This country is rendered peculiarly valuable by its inhabitants, who are represented to amount to nearly 4,000, generally well affected and much attached to the United States, and zealous for the establishment of a government under their authority.

I therefore recommend to your consideration the expediency of erecting a government in the district of the Natchez similar to that established for the territory northwest of the river Ohio, but with certain modifications relative to titles or claims of land, whether of individuals or companies, or to claims of jurisdiction of any individual State.

JOHN ADAMS.

UNITED STATES, *June 22, 1797.*

Gentlemen of the House of Representatives:

Immediately after I had received your resolution of the 10th of June, requesting a report respecting the depredations committed on the commerce of the United States since the 1st of October, 1796, specifying the name of the vessel taken, where bound to or from, species of lading, the value (when it can be ascertained) of the vessel and cargo taken, and by what power captured, particularizing those which have been actually condemned, together with the proper documents to ascertain the same, I directed a collection to be made of all such information as should be found in the possession of the Government; in consequence of which the Secretary of State has made the report and the collection of documents which

accompany this message, and are now laid before the House of Representatives in compliance with their desire.

JOHN ADAMS.

UNITED STATES, *June 23, 1797.*

Gentlemen of the Senate and of the House of Representatives:

The Dey of Algiers has manifested a predilection for American-built vessels, and in consequence has desired that two vessels might be constructed and equipped as cruisers according to the choice and taste of Captain O'Brien. The cost of two such vessels built with live oak and cedar, and coppered, with guns and all other equipments complete, is estimated at \$45,000. The expense of navigating them to Algiers may perhaps be compensated by the freight of the stores with which they may be loaded on account of our stipulations by treaty with the Dey.

A compliance with the Dey's request appears to me to be of serious importance. He will repay the whole expense of building and equipping the two vessels, and as he has advanced the price of our peace with Tripoli, and become pledged for that of Tunis, the United States seem to be under peculiar obligations to provide this accommodation, and I trust that Congress will authorize the advance of money necessary for that purpose.

It also appears to be of importance to place at Algiers a person as consul in whose integrity and ability much confidence may be placed, to whom a considerable latitude of discretion should be allowed, for the interest of the United States in relation to their commerce. That country is so remote as to render it impracticable for the consul to ask and receive instructions in sudden emergencies. He may sometimes find it necessary to make instant engagements for money or its equivalent, to prevent greater expenses or more serious evils. We can hardly hope to escape occasions of discontent proceeding from the Regency or arising from the misconduct or even the misfortunes of our commercial vessels navigating in the Mediterranean Sea, and unless the causes of discontent are speedily removed the resentment of

the Regency may be exerted with precipitation on our defenseless citizens and their property, and thus, occasion a tenfold expense to the United States. For these reasons it appears to me to be expedient to vest the consul at Algiers with a degree of discretionary power which can be requisite in no other situation; and to encourage a person deserving the public confidence to accept so expensive and responsible a situation, it appears indispensable to allow him a handsome salary. I should confer on such a consul a superintending power over the consulates for the States of Tunis and Tripoli, especially in respect to pecuniary engagements, which should not be made without his approbation.

While the present salary of \$2,000 a year appears adequate to the consulates of Tunis and Tripoli, twice that sum probably will be requisite for Algiers.

JOHN ADAMS.

UNITED STATES, *July 3, 1797.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

The whole of the intelligence which has for some time past been received from abroad, the correspondences between this Government and the ministers of the belligerent powers residing here, and the advices from the officers of the United States, civil and military, upon the frontiers all conspire to shew in a very strong light the critical situation of our country. That Congress might be enabled to form a more perfect judgment of it and of the measures necessary to be taken, I have directed the proper officers to prepare such collections of extracts from the public correspondences as might afford the clearest information. The reports made to me from the Secretary of State and the Secretary of War, with a collection of documents from each of them, are now communicated to both Houses of Congress. I have desired that the message, reports, and documents may be considered as confidential merely that the members of both Houses of Congress may be apprised of their contents before they should be made public. As soon as the two Houses shall have heard them, I shall submit to their discretion the

publication of the whole, or any such parts of them as they shall judge necessary or expedient for the public good.

JOHN ADAMS.

PROCLAMATION.

BY JOHN ADAMS, THE PRESIDENT OF THE UNITED STATES OF AMERICA.

A PROCLAMATION.

Whereas an act of the Congress of the United States was passed on the 9th day of February, 1793, entitled "An act regulating foreign coins, and for other purposes," in which it was enacted "that foreign gold and silver coins shall pass current as money within the United States and be a legal tender for the payment of all debts and demands" at the several and respective rates therein stated; and that "at the expiration of three years next ensuing the time when the coinage of gold and silver agreeably to the act intituled "An act establishing a mint and regulating the coins of the United States" shall commence at the Mint of the United States (which time shall be announced by the proclamation of the President of the United States), all foreign gold coins and all foreign silver coins, except Spanish milled dollars and parts of such dollars, shall cease to be a legal tender as aforesaid:

Now, therefore, I, the said John Adams, President of the United States, hereby proclaim, announce, and give notice to all whom it may concern that, agreeably to the act last above mentioned, the coinage of silver at the Mint of the United States commenced on the 15th day of October, 1794, and the coinage of gold on the 31st day of July, 1795; and that consequently, in conformity to the act first above mentioned, all foreign silver coins, except Spanish milled dollars and parts of such dollars, will cease to pass current as money within the United States and to be a legal tender for the payment of any debts or demands after the 15th day of October next, and all foreign gold coins will cease to pass current as money within the United States and to be a legal tender as aforesaid for the payment of any debts or demands after the 31st day of July, which will be A.D. 1798.

In testimony whereof I have caused the seal of the United States to be affixed to these presents, and signed the same with my hand.

[SEAL.]

Done at Philadelphia, the 22d day of July, A.D. 1797, and of the Independence of the United States the twenty-second.

JOHN ADAMS.

By the President:
TIMOTHY PICKERING,
Secretary of State.

FIRST ANNUAL ADDRESS.

UNITED STATES, *November 22, 1797.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

I was for some time apprehensive that it would be necessary, on account of the contagious sickness which afflicted the city of Philadelphia, to convene the National Legislature at some other place. This measure it was desirable to avoid, because it would occasion much public inconvenience and a considerable public expense and add to the calamities of the inhabitants of this city, whose sufferings must have excited the sympathy of all their fellow-citizens. Therefore, after taking measures to ascertain the state and decline of the sickness, I postponed my determination, having hopes, now happily realized, that, without hazard to the lives or health of the members, Congress might assemble at this place, where it was next by law to meet. I submit, however, to your consideration whether a power to postpone the meeting of Congress, without passing the time fixed by the Constitution upon such occasions, would not be a useful amendment to the law of 1794.

Although I can not yet congratulate you on the reestablishment of peace in Europe and the restoration of security to the persons and properties of our citizens from injustice and violence at sea, we have, nevertheless, abundant cause of gratitude to the source of benevolence and influence for interior tranquillity and personal security, for propitious seasons, prosperous agriculture, productive fisheries, and general improvements, and, above all, for a rational spirit of civil and religious liberty and a calm but steady determination to support our sovereignty, as well as our moral and our religious principles, against all open and secret attacks.

Our envoys extraordinary to the French Republic embarked—one in July, the other early in August—to join their colleague in Holland. I have received intelligence of the arrival of both of them in Holland, from whence they all proceeded on their journeys to Paris within a few days of the 19th of September. Whatever may be the result of this mission, I trust that

nothing will have been omitted on my part to conduct the negotiation to a successful conclusion, on such equitable terms as may be compatible with the safety, honor, and interest of the United States. Nothing, in the meantime, will contribute so much to the preservation of peace and the attainment of justice as a manifestation of that energy and unanimity of which on many former occasions the people of the United States have given such memorable proofs, and the exertion of those resources for national defense which a beneficent Providence has kindly placed within their power.

It may be confidently asserted that nothing has occurred since the adjournment of Congress which renders inexpedient those precautionary measures recommended by me to the consideration of the two Houses at the opening of your late extraordinary session. If that system was then prudent, it is more so now, as increasing depredations strengthen the reasons for its adoption.

Indeed, whatever may be the issue of the negotiation with France, and whether the war in Europe is or is not to continue, I hold it most certain that permanent tranquillity and order will not soon be obtained. The state of society has so long been disturbed, the sense of moral and religious obligations so much weakened, public faith and national honor have been so impaired, respect to treaties has been so diminished, and the law of nations has lost so much of its force, while pride, ambition, avarice, and violence have been so long unrestrained, there remains no reasonable ground on which to raise an expectation that a commerce without protection or defense will not be plundered.

The commerce of the United States is essential, if not to their existence, at least to their comfort, their growth, prosperity, and happiness. The genius, character, and habits of the people are highly commercial. Their cities have been formed and exist upon commerce. Our agriculture, fisheries, arts, and manufactures are connected with and depend upon it. In short, commerce has made this country what it is, and it can not be destroyed or neglected without involving the people in poverty and distress. Great numbers are directly and solely supported by navigation. The faith of society is pledged for the preservation of the rights of commercial and seafaring no less than of the other citizens. Under this view of our affairs, I should hold myself

guilty of a neglect of duty if I forbore to recommend that we should make every exertion to protect our commerce and to place our country in a suitable posture of defense as the only sure means of preserving both.

I have entertained an expectation that it would have been in my power at the opening of this session to have communicated to you the agreeable information of the due execution of our treaty with His Catholic Majesty respecting the withdrawing of his troops from our territory and the demarcation of the line of limits, but by the latest authentic intelligence Spanish garrisons were still continued within our country, and the running of the boundary line had not been commenced. These circumstances are the more to be regretted as they can not fail to affect the Indians in a manner injurious to the United States. Still, however, indulging the hope that the answers which have been given will remove the objections offered by the Spanish officers to the immediate execution of the treaty, I have judged it proper that we should continue in readiness to receive the posts and to run the line of limits. Further information on this subject will be communicated in the course of the session.

In connection with this unpleasant state of things on our western frontier it is proper for me to mention the attempts of foreign agents to alienate the affections of the Indian nations and to excite them to actual hostilities against the United States. Great activity has been exerted by those persons who have insinuated themselves among the Indian tribes residing within the territory of the United States to influence them to transfer their affections and force to a foreign nation, to form them into a confederacy, and prepare them for war against the United States. Although measures have been taken to counteract these infractions of our rights, to prevent Indian hostilities, and to preserve entire their attachment to the United States, it is my duty to observe that to give a better effect to these measures and to obviate the consequences of a repetition of such practices a law providing adequate punishment for such offenses may be necessary.

The commissioners appointed under the fifth article of the treaty of amity, commerce, and navigation between the United States and Great Britain to ascertain the river which was truly intended under the name of the river St. Croix mentioned in the treaty of peace, met at Passamaquoddy Bay in October, 1796, and viewed the mouths of the rivers in question and the

adjacent shores and islands, and, being of opinion that actual surveys of both rivers to their sources were necessary, gave to the agents of the two nations instructions for that purpose, and adjourned to meet at Boston in August. They met, but the surveys requiring more time than had been supposed, and not being then completed, the commissioners again adjourned, to meet at Providence, in the State of Rhode Island, in June next, when we may expect a final examination and decision.

The commissioners appointed in pursuance of the sixth article of the treaty met at Philadelphia in May last to examine the claims of British subjects for debts contracted before the peace and still remaining due to them from citizens or inhabitants of the United States. Various causes have hitherto prevented any determinations, but the business is now resumed, and doubtless will be prosecuted without interruption.

Several decisions on the claims of citizens of the United States for losses and damages sustained by reason of irregular and illegal captures or condemnations of their vessels or other property have been made by the commissioners in London conformably to the seventh article of the treaty. The sums awarded by the commissioners have been paid by the British Government. A considerable number of other claims, where costs and damages, and not captured property, were the only objects in question, have been decided by arbitration, and the sums awarded to the citizens of the United States have also been paid.

The commissioners appointed agreeably to the twenty-first article of our treaty with Spain met at Philadelphia in the summer past to examine and decide on the claims of our citizens for losses they have sustained in consequence of their vessels and cargoes having been taken by the subjects of His Catholic Majesty during the late war between Spain and France. Their sittings have been interrupted, but are now resumed.

The United States being obligated to make compensation for the losses and damages sustained by British subjects, upon the award of the commissioners acting under the sixth article of the treaty with Great Britain, and for the losses and damages sustained by British subjects by reason of the capture of their vessels and merchandise taken within the limits and jurisdiction of the United States and brought into their ports, or taken by

vessels originally armed in ports of the United States, upon the awards of the commissioners acting under the seventh article of the same treaty, it is necessary that provision be made for fulfilling these obligations.

The numerous captures of American vessels by the cruisers of the French Republic and of some by those of Spain have occasioned considerable expenses in making and supporting the claims of our citizens before their tribunals. The sums required for this purpose have in divers instances been disbursed by the consuls of the United States. By means of the same captures great numbers of our seamen have been thrown ashore in foreign countries, destitute of all means of subsistence, and the sick in particular have been exposed to grievous sufferings. The consuls have in these cases also advanced moneys for their relief. For these advances they reasonably expect reimbursements from the United States.

The consular act relative to seamen requires revision and amendment. The provisions for their support in foreign countries and for their return are found to be inadequate and ineffectual. Another provision seems necessary to be added to the consular act. Some foreign vessels have been discovered sailing under the flag of the United States and with forged papers. It seldom happens that the consuls can detect this deception, because they have no authority to demand an inspection of the registers and sea letters.

Gentlemen of the House of Representatives:

It is my duty to recommend to your serious consideration those objects which by the Constitution are placed particularly within your sphere—the national debts and taxes.

Since the decay of the feudal system, by which the public defense was provided for chiefly at the expense of individuals, the system of loans has been introduced, and as no nation can raise within the year by taxes sufficient sums for its defense and military operations in time of war, the sums loaned and debts contracted have necessarily become the subjects of what have been called funding systems. The consequences arising from the continual accumulation of public debts in other countries ought to admonish us to be careful to prevent their growth in our own. The national defense must be provided for as well as the support of Government; but both should

be accomplished as much as possible by immediate taxes, and as little as possible by loans.

The estimates for the service of the ensuing year will by my direction be laid before you.

Gentlemen of the Senate and Gentlemen of the House of Representatives:

We are met together at a most interesting period. The situations of the principal powers of Europe are singular and portentous. Connected with some by treaties and with all by commerce, no important event there can be indifferent to us. Such circumstances call with peculiar importunity not less for a disposition to unite in all those measures on which the honor, safety, and prosperity of our country depend than for all the exertions of wisdom and firmness.

In all such measures you may rely on my zealous and hearty concurrence.

JOHN ADAMS.

ADDRESS OF THE SENATE TO JOHN ADAMS, PRESIDENT OF THE UNITED STATES.

THE PRESIDENT OF THE UNITED STATES.

SIR: The communications you thought proper to make in your speech to both Houses of Congress on the opening of their present session afford additional proofs of the attention, integrity, and firmness which have always marked your official character.

We can not but approve of the measures you had taken to ascertain the state and decline of the contagious sickness which has so lately afflicted the city of Philadelphia, and the pleasing circumstance that Congress is now

assembled at that place without hazard to the health of its members evinces the propriety of your having postponed a determination to convene the National Legislature at another place. We shall take into consideration the law of 1794 on this subject, and will readily concur in any amendment which may be deemed expedient.

It would have given us much pleasure to have received your congratulations on the reestablishment of peace in Europe and the restoration of security to the persons and property of our citizens from injustice and violence at sea; but though these events, so desirable to our country and the world, have not taken place, yet we have abundant cause of gratitude to the Great Disposer of Human Events for interior tranquillity and personal security, for propitious seasons, prosperous agriculture, productive fisheries, and general improvement, and, above all, for a rational spirit of civil and religious liberty and a calm but steady determination to support our sovereignty against all open and secret attacks.

We learn with satisfaction that our envoys extraordinary to the French Republic had safely arrived in Europe and were proceeding to the scene of negotiation, and whatever may be the result of the mission, we are perfectly satisfied that nothing on your part has been omitted which could in any way conduce to a successful conclusion of the negotiation upon terms compatible with the safety, honor, and interest of the United States; and we are fully convinced that in the meantime a manifestation of that unanimity and energy of which the people of the United States have given such memorable proofs and a proper exertion of those resources of national defense which we possess will essentially contribute to the preservation of peace and the attainment of justice.

We think, sir, with you that the commerce of the United States is essential to the growth, comfort, and prosperity of our country, and that the faith of society is pledged for the preservation of the rights of commercial and seafaring no less than of other citizens. And even if our negotiation with France should terminate favorably and the war in Europe cease, yet the state of society which unhappily prevails in so great a portion of the world and the experience of past times under better circumstances unite in warning us that a commerce so extensive and which holds out so many temptations to lawless plunderers can never be safe without protection; and we hold

ourselves obliged by every tie of duty which binds us to our constituents to promote and concur in such measures of marine defense as may convince our merchants and seamen that their rights are not sacrificed nor their injuries forgotten.

We regret that, notwithstanding the clear and explicit terms of the treaty between the United States and His Catholic Majesty, the Spanish garrisons are not yet withdrawn from our territory nor the running of the boundary line commenced. The United States have been faithful in the performance of their obligations to Spain, and had reason to expect a compliance equally prompt on the part of that power. We still, however, indulge the hope that the convincing answers which have been given to the objections stated by the Spanish officers to the immediate execution of the treaty will have their proper effect, and that this treaty, so mutually beneficial to the contracting parties, will be finally observed with good faith. We therefore entirely approve of your determination to continue in readiness to receive the posts and to run the line of partition between our territory and that of the King of Spain.

Attempts to alienate the affections of the Indians, to form them into a confederacy, and to excite them to actual hostility against the United States, whether made by foreign agents or by others, are so injurious to our interests at large and so inhuman with respect to our citizens inhabiting the adjacent territory as to deserve the most exemplary punishment, and we will cheerfully afford our aid in framing a law which may prescribe a punishment adequate to the commission of crimes so heinous.

The several objects you have pointed out to the attention of the Legislature, whether they regard our internal or external relations, shall receive from us that consideration which they merit, and we will readily concur in all such measures as may be necessary either to enable us to fulfill our engagements at home or to cause ourselves to be respected abroad; and at this portentous period, when the powers of Europe with whom we are connected by treaty or commerce are in so critical a situation, and when the conduct of some of those powers toward the United States is so hostile and menacing, the several branches of the Government are, in our opinion, called upon with peculiar importunity to unite, and by union not only to devise and carry into effect those measures on which the safety and

prosperity of our country depend, but also to undeceive those nations who, regarding us as a weak and divided people, have pursued systems of aggression inconsistent with a state of peace between independent nations. And, sir, we beg leave to assure you that we derive a singular consolation from the reflection that at such a time the executive part of our Government has been committed to your hands, for in your integrity, talents, and firmness we place the most entire confidence.

JACOB READ,
President of the Senate pro tempore.

NOVEMBER 27, 1797.

REPLY OF THE PRESIDENT.

UNITED STATES, *November 28, 1797.*

Gentlemen of the Senate:

I thank you for this address.

When, after the most laborious investigation and serious reflection, without partial considerations or personal motives, measures have been adopted or recommended, I can receive no higher testimony of their rectitude than the approbation of an assembly so independent, patriotic, and enlightened as the Senate of the United States.

Nothing has afforded me more entire satisfaction than the coincidence of your judgment with mine in the opinion of the essential importance of our commerce and the absolute necessity of a maritime defense. What is it that has drawn to Europe the superfluous riches of the three other quarters of the globe but a marine? What is it that has drained the wealth of Europe itself into the coffers of two or three of its principal commercial powers but a marine?

The world has furnished no example of a flourishing commerce without a maritime protection, and a moderate knowledge of man and his history will convince anyone that no such prodigy ever can arise. A mercantile marine and a military marine must grow up together; one can not long exist without the other.

JOHN ADAMS.

ADDRESS OF THE HOUSE OF REPRESENTATIVES TO JOHN ADAMS, PRESIDENT OF THE UNITED STATES.

SIR: While our sympathy is excited by the recent sufferings of the citizens of Philadelphia, we participate in the satisfaction which you are pleased to express that the duration of the late calamity was so limited as to render unnecessary the expense and inconvenience that would have been incident to the convention of Congress in another place; and we shall readily attend to every useful amendment of the law which contemplates the event of contagious sickness at the seat of Government.

In lamenting the increase of the injuries offered to the persons and property of our citizens at sea we gratefully acknowledge the continuance of interior tranquillity and the attendant blessings of which you remind us as alleviations of these fatal effects of injustice and violence.

Whatever may be the result of the mission to the French Republic, your early and uniform attachment to the interest of our country, your important services in the struggle for its independence, and your unceasing exertions for its welfare afford no room to doubt of the sincerity of your efforts to conduct the negotiation to a successful conclusion on such terms as may be compatible with the safety, honor, and interest of the United States. We have also a firm reliance upon the energy and unanimity of the people of these States in the assertion of their rights, and on their determination to exert upon all proper occasions their ample resources in providing for the national defense.

The importance of commerce and its beneficial influence upon agriculture, arts, and manufactures have been verified in the growth and prosperity of our country. It is essentially connected with the other great interests of the community; they must flourish and decline together; and while the extension of our navigation and trade naturally excites the jealousy and tempts the avarice of other nations, we are firmly persuaded that the numerous and deserving class of citizens engaged in these pursuits and dependent on them for their subsistence has a strong and indisputable claim to our support and protection.

The delay of the Spanish officers to fulfill the treaty existing with His Catholic Majesty is a source of deep regret. We learn, however, with satisfaction that you still indulge hopes of removing the objections which have been made to its execution, and that you have continued in readiness to receive the posts. Disposed to perform with fidelity our national engagements, nothing shall be wanting on our part to obtain the same justice from others which we exercise toward them.

Our abhorrence can not be too strongly expressed of the intrigues of foreign agents to alienate the affections of the Indians and to rouse them to acts of hostility against the United States. No means in our power should be omitted of providing for the suppression of such cruel practices and for the adequate punishment of their atrocious authors.

Upon the other interesting subjects noticed in your address we shall bestow the requisite attention. To preserve inviolable the public faith by providing for the due execution of our treaties, to indemnify those who may have just claims to retribution upon the United States for expenses incurred in defending the property and relieving the necessities of our unfortunate fellow-citizens, to guard against evasions of the laws intended to secure advantages to the navigation of our own vessels, and especially to prevent by all possible means an unnecessary accumulation of the public debt, are duties which we shall endeavor to keep in view and discharge with assiduity.

We regard with great anxiety the singular and portentous situation of the principal powers of Europe. It were devoutly to be wished that the United States, remote from this seat of war and discord, unambitious of conquests,

respecting the rights of other nations, and desirous merely to avail themselves of their natural resources, might be permitted to behold the scenes which desolate that quarter of the globe with only those sympathetic emotions which are natural to the lovers of peace and friends of the human race. But we are led by events to associate with these feelings a sense of the dangers which menace our security and peace. We rely upon your assurances of a zealous and hearty concurrence in such measures as may be necessary to avert these dangers, and nothing on our part shall be wanting to repel them which the honor, safety, and prosperity of our country may require.

NOVEMBER 28, 1797.

REPLY OF THE PRESIDENT.

UNITED STATES, *November 29, 1797.*

Gentlemen of the House of Representatives:

I receive this address from the House of Representatives of the United States with peculiar pleasure.

Your approbation of the meeting of Congress in this city and of those other measures of the Executive authority of Government communicated in my address to both Houses at the opening of the session afford me great satisfaction, as the strongest desire of my heart is to give satisfaction to the people and their Representatives by a faithful discharge of my duty.

The confidence you express in the sincerity of my endeavors and in the unanimity of the people does me much honor and gives me great joy.

I rejoice in that harmony which appears in the sentiments of all the branches of the Government on the importance of our commerce and our obligations to defend it, as well as in all the other subjects recommended to your consideration, and sincerely congratulate you and our fellow-citizens

at large on this appearance, so auspicious to the honor, interest, and happiness of the nation.

SPECIAL MESSAGES.

UNITED STATES, *December 6, 1797.*

Gentlemen of the Senate:

Isaac Smith, esq., who was appointed, with the advice and consent of the Senate, to hold a treaty with the Seneca Nation of Indians, to superintend the purchase of a parcel of their land under a right of preemption derived from the State of Massachusetts, and situated within the State of New York, having declined that service, Jeremiah Wadsworth, esq., was appointed during your recess to hold a treaty, which has terminated in a deed of bargain and sale, herewith submitted to your consideration.

It being represented to me that the immediate investment in bank stock of the moneys which are to be the consideration of this deed might be attended with considerable loss to the Indians by raising the market price of that article, it is suggested whether it would not be expedient that the ratification should be made conclusive and binding on the parties only after the President shall be satisfied that the investment of the moneys has been made conformably to the intention of the treaty.

JOHN ADAMS.

UNITED STATES, *December 13, 1797.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

I lay before you the copy of a letter from the judges of the Supreme Court of the United States, representing the inconvenience arising from altering the time of holding the circuit court for the State of Delaware from April to June, and desiring that the existing law may be altered by restoring the spring session of the circuit court in Delaware to the 27th of April.

JOHN ADAMS.

UNITED STATES, *December 30, 1797.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

In compliance with the desire of the two Houses of Congress, expressed in their resolution of the 2d of March, 1797, that some speedy and effectual means might be adopted of obtaining information from the States of Connecticut, New Jersey, Pennsylvania, Maryland, Virginia, Kentucky, Tennessee, and South Carolina whether they have ratified the amendment proposed by Congress to the Constitution concerning the suability of States, and if they have, to obtain proper evidences, measures have been taken and information and evidences obtained the particulars of which will appear in the report from the Secretary of State made by my direction on the 28th day of this month, and now presented to the two Houses for their consideration.

JOHN ADAMS.

UNITED STATES, *January 5, 1798.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

The Secretary for the Department of War on the 30th day of December last made a representation to me of the situation of affairs in his office, which I now transmit to the Senate and House of Representatives, and recommend to their consideration and decision.

JOHN ADAMS.

UNITED STATES, *January 8, 1798.*

Gentlemen of the Senate:

The situation of affairs between some of the citizens of the United States and the Cherokee Indians has evinced the propriety of holding a treaty with that nation to extinguish by purchase their right to certain parcels of land and to adjust and settle other points relative to the safety and conveniency of our citizens. With this view I nominate Fisher Ames, of Dedham, in the State of Massachusetts; Bushrod Washington, of Richmond, in the State of Virginia, and Alfred Moore, of North Carolina, to be commissioners of the United States with full powers to hold conferences and conclude a treaty with the Cherokee Nation of Indians for the purposes before mentioned.

JOHN ADAMS.

UNITED STATES, *January 17, 1798.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

I have now an opportunity of transmitting to Congress a report of the Secretary of State, with a copy of an act of the legislature of the State of Kentucky consenting to the ratification of the amendment of the Constitution of the United States proposed by Congress in their resolution of the 2d day of December, 1793, relative to the suability of States. This amendment, having been adopted by three-fourths of the several States, may now be declared to be a part of the Constitution of the United States.

JOHN ADAMS.

UNITED STATES, *January 17, 1798.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

The situation of affairs between the United States and the Cherokee Indians having evinced the expediency of a treaty with that nation for the promotion of justice to them, as well as of the interests and convenience of our citizens, I have nominated and, by and with the advice and consent of the Senate, appointed commissioners to hold conferences and conclude a treaty as early as the season of the year and the convenience of the parties will admit.

As we know very well by experience such negotiations can not be carried on without considerable expenses, I recommend to your consideration the propriety of making an appropriation at this time for defraying such as may be necessary for holding and concluding a treaty.

That you may form your judgments with greater facility, I shall direct the proper officer to lay before you an estimate of such articles and expenses as may be thought indispensable.

JOHN ADAMS.

UNITED STATES, *January 18, 1798.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

A representation has been made to me by the judge of the Pennsylvania district of the United States of certain inconveniences and disagreeable circumstances which have occurred in the execution of the law passed on the 28th day of May, 1796, entitled "An act for the relief of persons imprisoned for debt," as well as of certain doubts which have been raised concerning its construction. This representation, together with a report of the Attorney-General on the same subject, I now transmit to Congress for their consideration, that if any amendments or explanations of that law should be thought advisable they may be adopted.

JOHN ADAMS.

UNITED STATES, *January 23, 1798.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

At the commencement of this session of Congress I proposed in the course of it to communicate to both Houses further information concerning the situation of our affairs in the territories of the United States situated on the Mississippi River and in its neighborhood; our intercourse with the Indian nations; our relations with the Spanish Government, and the conduct of their officers and agents. This information will be found in a report of the Secretary of State and the documents attending it, which I now present to the Senate and House of Representatives.

JOHN ADAMS.

UNITED STATES, *February 2, 1798.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

I have received from our minister in London two acts of the Parliament of Great Britain, one passed on the 4th of July, 1797, entitled "An act for carrying into execution the treaty of amity, commerce, and navigation concluded between His Majesty and the United States of America," the other passed on the 19th day of July, 1797, entitled "An act for regulating the trade to be carried on with the British possessions in India by the ships of nations in amity with His Majesty." These acts have such connections with the commercial and political interests of the United States that it is proper they should be communicated to Congress. I have accordingly transmitted copies of them with this message.

JOHN ADAMS.

UNITED STATES, *February 5, 1798.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

I have received a letter from His Excellency Charles Pinckney, esq., governor of the State of South Carolina, dated the 22d of October, 1797, inclosing a number of depositions of witnesses to several captures and outrages committed within and near the limits of the United States by a French privateer belonging to Cape Francois, or Monte Christo, called the *Vertitude* or *Fortitude*, and commanded by a person of the name of Jordan or Jourdain, and particularly upon an English merchant ship named the *Oracabissa*, which he first plundered and then burned, with the rest of her cargo, of great value, within the territory of the United States, in the harbor of Charleston, on the 17th day of October last, copies of which letter and depositions, and also of several other depositions relative to the same subject, received from the collector of Charleston, are herewith communicated.

Whenever the channels of diplomatical communication between the United States and France shall be opened, I shall demand satisfaction for the insult and reparation for the injury.

I have transmitted these papers to Congress not so much for the purpose of communicating an account of so daring a violation of the territory of the United States as to show the propriety and necessity of enabling the Executive authority of Government to take measures for protecting the citizens of the United States and such foreigners as have a right to enjoy their peace and the protection of their laws within their limits in that as well as some other harbors which are equally exposed.

JOHN ADAMS.

UNITED STATES, *February 12, 1798.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

In obedience to the law, I now present to both Houses of Congress my annual account of expenditures from the contingent fund during the year 1797, by which it appears that on the 1st day of January last there remained in the Treasury a balance of \$15,494.24 subject to future dispositions of Government.

JOHN ADAMS.

UNITED STATES, *February 18, 1798.*

Gentlemen of the House of Representatives:

In the report of the Secretary of State and the documents herewith transmitted will be found such information as is in our possession of the losses recovered by the citizens of the United States under the treaty made with Great Britain, which are now presented to the House of Representatives in compliance with their request in their resolution of the 1st of this month.

JOHN ADAMS.

UNITED STATES, *February 20, 1798.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

In obedience to the law of the United States of the 3d of March, 1797, entitled "An act authorizing an expenditure and making an appropriation for the prosecution of the claims of certain citizens of the United States for property captured by the belligerent powers," I submit to Congress the account exhibited to me by the Secretary of State with his report of the 17th of this month.

JOHN ADAMS.

UNITED STATES, *February 21, 1798.*

Gentlemen of the Senate:

Having received the original treaty concluded between the United States and the Government of Tunis, I lay it before the Senate of the United States whether they advise and consent to its ratification.

JOHN ADAMS.

UNITED STATES, *February 23, 1798.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

The inclosed memorial from the commissioners appointed under an act of the United States entitled "An act for establishing the temporary and permanent seat of the Government of the United States," representing the situation and circumstances of the city of Washington, I take this opportunity to present to both Houses of the Legislature and recommend to their consideration. Alexander White, esq., one of those commissioners, is now in this city, and will be able to give to Congress, or any of their committees, any explanation or further information which the subject may require.

JOHN ADAMS.

UNITED STATES, *March 5, 1798.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

The first dispatches from our envoys extraordinary since their arrival at Paris were received at the Secretary of State's office at a late hour last evening. They are all in a character which will require some days to be deciphered, except the last, which is dated the 8th of January, 1798. The contents of this letter are of so much importance to be immediately made known to Congress and to the public, especially to the mercantile part of our fellow-citizens, that I have thought it my duty to communicate them to both Houses without loss of time.

JOHN ADAMS.

UNITED STATES, *March 12, 1798.*

Gentlemen of the Senate:

Insinuations having been repeatedly made in the name of the Court of Sweden of an inclination to renew the connection between the United States and that power, I sent, in the recess of the Senate, to our minister at Berlin a full power to negotiate that business, with such alterations as might be agreeable to both parties; but as that commission, if not renewed with the advice and consent of the Senate, will expire with the present session of Congress, I now nominate John Quincy Adams to be a commissioner with full powers to negotiate a treaty of amity and commerce with His Majesty the King of Sweden.

JOHN ADAMS.

UNITED STATES, *March 19, 1798.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

The dispatches from the envoys extraordinary of the United States to the French Republic, which were mentioned in my message to both Houses of

Congress of the 5th instant, have been examined and maturely considered.

While I feel a satisfaction in informing you that their exertions for the adjustment of the differences between the two nations have been sincere and unremitted, it is incumbent on me to declare that I perceive no ground of expectation that the objects of their mission can be accomplished on terms compatible with the safety, the honor, or the essential interests of the nation.

This result can not with justice be attributed to any want of moderation on the part of this Government, or to any indisposition to forego secondary interests for the preservation of peace. Knowing it to be my duty, and believing it to be your wish, as well as that of the great body of the people, to avoid by all reasonable concessions any participation in the contentions of Europe, the powers vested in our envoys were commensurate with a liberal and pacific policy and that high confidence which might justly be reposed in the abilities, patriotism, and integrity of the characters to whom the negotiation was committed. After a careful review of the whole subject, with the aid of all the information I have received, I can discern nothing which could have insured or contributed to success that has been omitted on my part, and nothing further which can be attempted consistently with maxims for which our country has contended at every hazard, and which constitute the basis of our national sovereignty.

Under these circumstances I can not forbear to reiterate the recommendations which have been formerly made, and to exhort you to adopt with promptitude, decision, and unanimity such measures as the ample resources of the country afford for the protection of our seafaring and commercial citizens, for the defense of any exposed portions of our territory, for replenishing our arsenals, establishing foundries and military manufactures, and to provide such efficient revenue as will be necessary to defray extraordinary expenses and supply the deficiencies which may be occasioned by depredations on our commerce.

The present state of things is so essentially different from that in which instructions were given to the collectors to restrain vessels of the United States from sailing in an armed condition that the principle on which those orders were issued has ceased to exist. I therefore deem it proper to inform

Congress that I no longer conceive myself justifiable in continuing them, unless in particular cases where there may be reasonable ground of suspicion that such vessels are intended to be employed contrary to law.

In all your proceedings it will be important to manifest a zeal, vigor, and concert in defense of the national rights proportioned to the danger with which they are threatened.

JOHN ADAMS.

UNITED STATES, *April 3, 1798.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

In compliance with the request of the House of Representatives expressed in their resolution of the 2d of this month, I transmit to both Houses those instructions to and dispatches from the envoys extraordinary of the United States to the French Republic which were mentioned in my message of the 19th of March last, omitting only some names and a few expressions descriptive of the persons.

I request that they may be considered in confidence until the members of Congress are fully possessed of their contents and shall have had opportunity to deliberate on the consequences of their publication, after which time I submit them to your wisdom.

JOHN ADAMS.

UNITED STATES, *April 12, 1798.*

Gentlemen of the Senate:

A treaty with the Mohawk Nation of Indians has by accident lain long neglected. It was executed under the authority of the Honorable Isaac

Smith, a commissioner of the United States. I now submit it to the Senate for their consideration.

JOHN ADAMS.

UNITED STATES, *May 3, 1798.*

Gentlemen of the Senate:

His Excellency John Jay, esq., governor of New York, has informed me that the Oneida tribe of Indians have proposed to sell a part of their land to the said State, and that the legislature at their late session authorized the purchase, and to accomplish this object the governor has desired that a commissioner may be appointed to hold a treaty with the Oneida tribe of Indians, at which the agents of the State of New York may agree with them on the terms of the purchase. I therefore nominate Joseph Hopkinson, esq., of Pennsylvania, to be the commissioner to hold a treaty with the said Oneida tribe of Indians for the purpose above mentioned.

JOHN ADAMS.

UNITED STATES, *June 21, 1798.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

While I congratulate you on the arrival of General Marshall, one of our late envoys extraordinary to the French Republic, at a place of safety, where he is justly held in honor, I think it my duty to communicate to you a letter received by him from Mr. Gerry, the only one of the three who has not received his congé. This letter, together with another from the minister of foreign relations to him of the 3d of April, and his answer of the 4th, will shew the situation in which he remains—his intentions and prospects.

I presume that before this time he has received fresh instructions (a copy of which accompanies this message) to consent to no loans, and therefore the negotiation may be considered at an end.

I will never send another minister to France without assurances that he will be received, respected, and honored as the representative of a great, free, powerful, and independent nation.

JOHN ADAMS.

UNITED STATES, *June 27, 1798.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

I have received a letter from His Excellency Thomas Mifflin, governor of Pennsylvania, inclosing some documents which I judge it my duty to lay before Congress without loss of time.

As my opinion coincides entirely with that of his excellency the governor, I recommend the subject to the consideration of both Houses of Congress, whose authority alone appears to me adequate to the occasion.

JOHN ADAMS.

UNITED STATES, *July 2, 1798.*

Gentlemen of the Senate:

I nominate George Washington, of Mount Vernon, to be Lieutenant-General and Commander in Chief of all the armies raised or to be raised in the United States.

JOHN ADAMS.

UNITED STATES, *July 13, 1798.*

Gentlemen of the Senate:

A resolution of both Houses of Congress authorizing an adjournment on Monday, the 16th of this month, has been laid before me. Sensible of the severity of the service in so long a session, it is with great reluctance that I find myself obliged to offer any consideration which may operate against the inclinations of the members; but certain measures of Executive authority which will require the consideration of the Senate, and which can not be matured, in all probability, before Monday or Tuesday, oblige me to request of the Senate that they would continue their session until Wednesday or Thursday.

JOHN ADAMS.

UNITED STATES, *July 17, 1798.*

Gentlemen of the Senate:

Believing that the letter received this morning from General Washington will give high satisfaction to the Senate, I transmit them a copy of it, and congratulate them and the public on this great event—the General's acceptance of his appointment as Lieutenant-General and Commander in Chief of the Army.

JOHN ADAMS.

MOUNT VERNON, *July 13, 1798.*

JOHN ADAMS,
President of the United States.

DEAR SIR: I had the honor, on the evening of the 11th instant, to receive from the hands of the Secretary of War your favor of the 7th, announcing that you had, with the advice and consent of the Senate, appointed me "Lieutenant-General and Commander in Chief of all the armies raised or to be raised for the service of the United States."

I can not express how greatly affected I am at this new proof of public confidence and the highly flattering manner in which you have been pleased to make the communication. At the same time I must not conceal from you my earnest wish that the choice had fallen upon a man less declined in years and better qualified to encounter the usual vicissitudes of war.

You know, sir, what calculation I had made relative to the probable course of events on my retiring from office, and the determination I had consoled myself with of closing the remnant of my days in my present peaceful abode. You will therefore be at no loss to conceive and appreciate the sensations I must have experienced to bring my mind to any conclusion that would pledge me, at so late a period of life, to leave scenes I sincerely love to enter upon the boundless field of public action, incessant trouble, and high responsibility.

It was not possible for me to remain ignorant of or indifferent to recent transactions. The conduct of the Directory of France toward our country, their insidious hostility to its Government, their various practices to withdraw the affections of the people from it, the evident tendency of their acts and those of their agents to countenance and invigorate opposition, their disregard of solemn treaties and the laws of nations, their war upon our defenseless commerce, their treatment of our ministers of peace, and their demands amounting to tribute could not fail to excite in me corresponding sentiments with those my countrymen have so generally expressed in their affectionate addresses to you. Believe me, sir, no one can more cordially approve of the wise and prudent measures of your Administration. They ought to inspire universal confidence, and will no doubt, combined with the state of things, call from Congress such laws and means as will enable you to meet the full force and extent of the crisis.

Satisfied, therefore, that you have sincerely wished and endeavored to avert war, and exhausted to the last drop the cup of reconciliation, we can

with pure hearts appeal to Heaven for the justice of our cause, and may confidently trust the final result to that kind Providence who has heretofore and so often signally favored the people of these United States.

Thinking in this manner, and feeling how incumbent it is upon every person, of every description, to contribute at all times to his country's welfare, and especially in a moment like the present, when everything we hold dear and sacred is so seriously threatened, I have finally determined to accept the commission of Commander in Chief of the armies of the United States, with the reserve only that I shall not be called into the field until the Army is in a situation to require my presence or it becomes indispensable by the urgency of circumstances.

In making this reservation I beg it to be understood that I do not mean to withhold any assistance to arrange and organize the Army which you may think I can afford. I take the liberty also to mention that I must decline having my acceptance considered as drawing after it any immediate charge upon the public, or that I can receive any emoluments annexed to the appointment before entering into a situation to incur expense.

The Secretary of War being anxious to return to the seat of Government, I have detained him no longer than was necessary to a full communication upon the several points he had in charge.

With very great respect and consideration, I have the honor to be, dear sir, your most obedient and humble servant,

G'o. WASHINGTON.

PROCLAMATIONS.

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA.

A PROCLAMATION.

As the safety and prosperity of nations ultimately and essentially depend on the protection and the blessing of Almighty God, and the national acknowledgment of this truth is not only an indispensable duty which the people owe to Him, but a duty whose natural influence is favorable to the promotion of that morality and piety without which social happiness can not exist nor the blessings of a free government be enjoyed; and as this duty, at all times incumbent, is so especially in seasons of difficulty or of danger, when existing or threatening calamities, the just judgments of God against prevalent iniquity, are a loud call to repentance and reformation; and as the United States of America are at present placed in a hazardous and afflictive situation by the unfriendly disposition, conduct, and demands of a foreign power, evinced by repeated refusals to receive our messengers of reconciliation and peace, by depredations on our commerce, and the infliction of injuries on very many of our fellow-citizens while engaged in their lawful business on the seas—under these considerations it has appeared to me that the duty of imploring the mercy and benediction of Heaven on our country demands at this time a special attention from its inhabitants.

I have therefore thought fit to recommend, and I do hereby recommend, that Wednesday, the 9th day of May next, be observed throughout the United States as a day of solemn humiliation, fasting, and prayer; that the citizens of these States, abstaining on that day from their customary worldly occupations, offer their devout addresses to the Father of Mercies agreeably to those forms or methods which they have severally adopted as the most suitable and becoming; that all religious congregations do, with the deepest humility, acknowledge before God the manifold sins and transgressions

with which we are justly chargeable as individuals and as a nation, beseeching Him at the same time, of His infinite grace, through the Redeemer of the World, freely to remit all our offenses, and to incline us by His Holy Spirit to that sincere repentance and reformation which may afford us reason to hope for his inestimable favor and heavenly benediction; that it be made the subject of particular and earnest supplication that our country may be protected from all the dangers which threaten it; that our civil and religious privileges may be preserved inviolate and perpetuated to the latest generations; that our public councils and magistrates may be especially enlightened and directed at this critical period; that the American people may be united in those bonds of amity and mutual confidence and inspired with that vigor and fortitude by which they have in times past been so highly distinguished and by which they have obtained such invaluable advantages; that the health of the inhabitants of our land may be preserved, and their agriculture, commerce, fisheries, arts, and manufactures be blessed and prospered; that the principles of genuine piety and sound morality may influence the minds and govern the lives of every description of our citizens, and that the blessings of peace, freedom, and pure religion may be speedily extended to all the nations of the earth.

And finally, I recommend that on the said day the duties of humiliation and prayer be accompanied by fervent thanksgiving to the Bestower of Every Good Gift, not only for His having hitherto protected and preserved the people of these United States in the independent enjoyment of their religious and civil freedom, but also for having prospered them in a wonderful progress of population, and for conferring on them many and great favors conducive to the happiness and prosperity of a nation.

[SEAL.]

Given under my hand and the seal of the United States of America, at Philadelphia, this 23d day of March, A.D. 1798, and of the Independence of the said States the twenty-second.

JOHN ADAMS.

By the President:

TIMOTHY PICKERING,
Secretary of State.

[From C.R. Adams's Works of John Adams, Vol. IX, p. 170.]

PROCLAMATION.

JULY 13, 1798.

The citizen Joseph Philippe Letombe having heretofore produced to the President of the United States his commission as consul-general of the French Republic within the United States of America, and another commission as consul of the French Republic at Philadelphia; and, in like manner, the citizen Rosier having produced his commission as vice-consul of the French Republic at New York; and the citizen Arcambal having produced his commission as vice-consul of the French Republic at Newport; and citizen Theodore Charles Mozard having produced his commission as consul of the French Republic within the States of New Hampshire, Massachusetts, and Rhode Island; and the President of the United States having thereupon granted an exequatur to each of the French citizens above named, recognizing them in their respective consular offices above mentioned, and declaring them respectively free to exercise and enjoy such functions, powers, and privileges as are allowed to a consul-general, consuls, and vice-consuls of the French Republic by their treaties, conventions, and laws in that case made and provided; and the Congress of the United States, by their act passed the 7th day of July, 1798, having declared "that the United States are of right freed and exonerated from the stipulations of the treaties and of the consular convention heretofore concluded between the United States and France, and that the same shall not henceforth be regarded as legally obligatory on the Government or citizens of the United States," and by a former act, passed the 13th day of May, 1798, the Congress of the United States having "suspended the commercial intercourse between the United States and France and the dependencies thereof," which commercial intercourse was the direct and chief object of the consular establishment; and

Whereas actual hostilities have long been practiced on the commerce of the United States by the cruisers of the French Republic under the orders of its Government, which orders that Government refuses to revoke or relax; and hence it has become improper any longer to allow the consul-general, consuls, and vice-consuls of the French Republic above named, or any of its

consular persons or agents heretofore admitted in these United States, any longer to exercise their consular functions:

These are therefore to declare that I do no longer recognize the said citizen Letombe as consul-general or consul, nor the said citizens Rosier and Arcambal as vice-consuls, nor the said citizen Mozard as consul of the French Republic in any part of these United States, nor permit them or any other consular persons or agents of the French Republic heretofore admitted in the United States to exercise their functions as such; and I do hereby wholly revoke the exequaturs heretofore given to them respectively, and do declare them absolutely null and void from this day forward.

In testimony whereof, etc.

JOHN ADAMS.

SECOND ANNUAL ADDRESS.

UNITED STATES, *December 8, 1798.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

While with reverence and resignation we contemplate the dispensations of Divine Providence in the alarming and destructive pestilence with which several of our cities and towns have been visited, there is cause for gratitude and mutual congratulations that the malady has disappeared and that we are again permitted to assemble in safety at the seat of Government for the discharge of our important duties. But when we reflect that this fatal disorder has within a few years made repeated ravages in some of our principal seaports, and with increased malignancy, and when we consider the magnitude of the evils arising from the interruption of public and private business, whereby the national interests are deeply affected, I think it my duty to invite the Legislature of the Union to examine the expediency of establishing suitable regulations in aid of the health laws of the respective States; for these being formed on the idea that contagious sickness may be communicated through the channels of commerce, there seems to be a necessity that Congress, who alone can regulate trade, should frame a system which, while it may tend to preserve the general health, may be compatible with the interests of commerce and the safety of the revenue.

While we think on this calamity and sympathize with the immediate sufferers, we have abundant reason to present to the Supreme Being our annual oblations of gratitude for a liberal participation in the ordinary blessings of His providence. To the usual subjects of gratitude I can not omit to add one of the first importance to our well-being and safety; I mean that spirit which has arisen in our country against the menaces and aggression of a foreign nation. A manly sense of national honor, dignity, and independence has appeared which, if encouraged and invigorated by every branch of the Government, will enable us to view undismayed the enterprises of any foreign power and become the sure foundation of national prosperity and glory.

The course of the transactions in relation to the United States and France which have come to my knowledge during your recess will be made the subject of a future communication. That communication will confirm the ultimate failure of the measures which have been taken by the Government of the United States toward an amicable adjustment of differences with that power. You will at the same time perceive that the French Government appears solicitous to impress the opinion that it is averse to a rupture with this country, and that it has in a qualified manner declared itself willing to receive a minister from the United States for the purpose of restoring a good understanding. It is unfortunate for professions of this kind that they should be expressed in terms which may countenance the inadmissible pretension of a right to prescribe the qualifications which a minister from the United States should possess, and that while France is asserting the existence of a disposition on her part to conciliate with sincerity the differences which have arisen, the sincerity of a like disposition on the part of the United States, of which so many demonstrative proofs have been given, should even be indirectly questioned. It is also worthy of observation that the decree of the Directory alleged to be intended to restrain the depredations of French cruisers on our commerce has not given, and can not give, any relief. It enjoins them to conform to all the laws of France relative to cruising and prizes, while these laws are themselves the sources of the depredations of which we have so long, so justly, and so fruitlessly complained.

The law of France enacted in January last, which subjects to capture and condemnation neutral vessels and their cargoes if any portion of the latter are of British fabric or produce, although the entire property belong to neutrals, instead of being rescinded has lately received a confirmation by the failure of a proposition for its repeal. While this law, which, is an unequivocal act of war on the commerce of the nations it attacks, continues in force those nations can see in the French Government only a power regardless of their essential rights, of their independence and sovereignty; and if they possess the means they can reconcile nothing with their interest and honor but a firm resistance.

Hitherto, therefore, nothing is discoverable in the conduct of France which ought to change or relax our measures of defense. On the contrary, to extend and invigorate them is our true policy. We have no reason to regret

that these measures have been thus far adopted and pursued, and in proportion as we enlarge our view of the portentous and incalculable situation of Europe we shall discover new and cogent motives for the full development of our energies and resources.

But in demonstrating by our conduct that we do not fear war in the necessary protection of our rights and honor we shall give no room to infer that we abandon the desire of peace. An efficient preparation for war can alone insure peace. It is peace that we have uniformly and perseveringly cultivated, and harmony between us and France may be restored at her option. But to send another minister without more determinate assurances that he would be received would be an act of humiliation to which the United States ought not to submit. It must therefore be left with France (if she is indeed desirous of accommodation) to take the requisite steps. The United States will steadily observe the maxims by which they have hitherto been governed. They will respect the sacred rights of embassy; and with a sincere disposition on the part of France to desist from hostility, to make reparation for the injuries heretofore inflicted on our commerce, and to do justice in future, there will be no obstacle to the restoration of a friendly intercourse. In making to you this declaration I give a pledge to France and the world that the Executive authority of this country still adheres to the humane and pacific policy which has invariably governed its proceedings, in conformity with the wishes of the other branches of the Government and of the people of the United States. But considering the late manifestations of her policy toward foreign nations, I deem it a duty deliberately and solemnly to declare my opinion that whether we negotiate with her or not, vigorous preparations for war will be alike indispensable. These alone will give to us an equal treaty and insure its observance.

Among the measures of preparation which appear expedient, I take the liberty to recall your attention to the naval establishment. The beneficial effects of the small naval armament provided under the acts of the last session are known and acknowledged. Perhaps no country ever experienced more sudden and remarkable advantages from any measure of policy than we have derived from the arming for our maritime protection and defense. We ought without loss of time to lay the foundation for an increase of our Navy to a size sufficient to guard our coast and protect our trade. Such a naval force as it is doubtless in the power of the United States to create and

maintain would also afford to them the best means of general defense by facilitating the safe transportation of troops and stores to every part of our extensive coast. To accomplish this important object, a prudent foresight requires that systematical measures be adopted for procuring at all times the requisite timber and other supplies. In what manner this shall be done I leave to your consideration.

I will now advert, gentlemen, to some matters of less moment, but proper to be communicated to the National Legislature.

After the Spanish garrisons had evacuated the posts they occupied at the Natchez and Walnut Hills the commissioner of the United States commenced his observations to ascertain the point near the Mississippi which terminated the northernmost part of the thirty-first degree of north latitude. From thence he proceeded to run the boundary line between the United States and Spain. He was afterwards joined by the Spanish commissioner, when the work of the former was confirmed, and they proceeded together to the demarcation of the line. Recent information renders it probable that the Southern Indians, either instigated to oppose the demarcation or jealous of the consequences of suffering white people to run a line over lands to which the Indian title had not been extinguished, have ere this time stopped the progress of the commissioners; and considering the mischiefs which may result from continuing the demarcation in opposition to the will of the Indian tribes, the great expense attending it, and that the boundaries which the commissioners have actually established probably extend at least as far as the Indian title has been extinguished, it will perhaps become expedient and necessary to suspend further proceedings by recalling our commissioner.

The commissioners appointed in pursuance of the fifth article of the treaty of amity, commerce, and navigation between the United States and His Britannic Majesty to determine what river was truly intended under the name of the river St. Croix mentioned in the treaty of peace, and forming a part of the boundary therein described, have finally decided that question. On the 25th of October they made their declaration that a river called Scoodiac, which falls into Passamaquoddy Bay at its northwestern quarter, was the true St. Croix intended in the treaty of peace, as far as its great fork, where one of its streams comes from the westward and the other from the

northward, and that the latter stream is the continuation of the St. Croix to its source. This decision, it is understood, will preclude all contention among individual claimants, as it seems that the Scoodiac and its northern branch bound the grants of land which have been made by the respective adjoining Governments. A subordinate question, however, it has been suggested, still remains to be determined. Between the mouth of the St. Croix as now settled and what is usually called the Bay of Fundy lie a number of valuable islands. The commissioners have not continued the boundary line through any channel of these islands, and unless the bay of Passamaquoddy be a part of the Bay of Fundy this further adjustment of boundary will be necessary. But it is apprehended that this will not be a matter of any difficulty.

Such progress has been made in the examination and decision of cases of captures and condemnations of American vessels which were the subject of the seventh article of the treaty of amity, commerce, and navigation between the United States and Great Britain that it is supposed the commissioners will be able to bring their business to a conclusion in August of the ensuing year.

The commissioners acting under the twenty-fifth article of the treaty between the United States and Spain have adjusted most of the claims of our citizens for losses sustained in consequence of their vessels and cargoes having been taken by the subjects of His Catholic Majesty during the late war between France and Spain.

Various circumstances have concurred to delay the execution of the law for augmenting the military establishment, among these the desire of obtaining the fullest information to direct the best selection of officers. As this object will now be speedily accomplished, it is expected that the raising and organizing of the troops will proceed without obstacle and with effect.

Gentlemen of the House of Representatives:

I have directed an estimate of the appropriations which will be necessary for the service of the ensuing year to be laid before you, accompanied with a view of the public receipts and expenditures to a recent period. It will afford you satisfaction to infer the great extent and solidity of the public resources from the prosperous state of the finances, notwithstanding the

unexampled embarrassments which have attended commerce. When you reflect on the conspicuous examples of patriotism and liberality which have been exhibited by our mercantile fellow-citizens, and how great a proportion of the public resources depends on their enterprise, you will naturally consider whether their convenience can not be promoted and reconciled with the security of the revenue by a revision of the system by which the collection is at present regulated.

During your recess measures have been steadily pursued for effecting the valuations and returns directed by the act of the last session, preliminary to the assessment and collection of a direct tax. No other delays or obstacles have been experienced except such as were expected to arise from the great extent of our country and the magnitude and novelty of the operation, and enough has been accomplished to assure a fulfillment of the views of the Legislature.

Gentlemen of the Senate and Gentlemen of the House of Representatives:

I can not close this address without once more adverting to our political situation and inculcating the essential importance of uniting in the maintenance of our dearest interests; and I trust that by the temper and wisdom of your proceedings and by a harmony of measures we shall secure to our country that weight and respect to which it is so justly entitled.

JOHN ADAMS.

ADDRESS OF THE SENATE TO JOHN ADAMS, PRESIDENT OF THE UNITED STATES.

The PRESIDENT OF THE UNITED STATES.

SIR: The Senate of the United States join you in thanks to Almighty God for the removal of the late afflicting dispensations of His providence and for the patriotic spirit and general prosperity of our country. Sympathy for the sufferings of our fellow-citizens from disease and the important interests of

the Union demand of the National legislature a ready cooperation with the State governments in the use of such means as seem best calculated to prevent the return of this fatal calamity.

Although we have sincerely wished that an adjustment of our differences with the Republic of France might be effected on safe and honorable terms, yet the information you have given us of the ultimate failure of the negotiation has not surprised us. In the general conduct of that Republic we have seen a design of universal influence incompatible with the self-government and destructive of the independence of other States. In its conduct toward these United States we have seen a plan of hostility pursued with unremitted constancy, equally disregarding the obligations of treaties and the rights of individuals. We have seen two embassies, formed for the purpose of mutual explanations and clothed with the most extensive and liberal powers, dismissed without recognition and even without a hearing. The Government of France has not only refused to repeal but has recently enjoined the observance of its former edict respecting merchandise of British fabric or produce the property of neutrals, by which the interruption of our lawful commerce and the spoliation of the property of our citizens have again received a public sanction. These facts indicate no change of system or disposition; they speak a more intelligible language than professions of solicitude to avoid a rupture, however ardently made. But if, after the repeated proofs we have given of a sincere desire for peace, these professions should be accompanied by insinuations implicating the integrity with which it has been pursued; if, neglecting and passing by the constitutional and authorized agents of the Government, they are made through the medium of individuals without public character or authority, and, above all, if they carry with them a claim to prescribe the political qualifications of the minister of the United States to be employed in the negotiation, they are not entitled to attention or consideration, but ought to be regarded as designed to separate the people from their Government and to bring about by intrigue that which open force could not effect.

We are of opinion with you, sir, that there has nothing yet been discovered in the conduct of France which can justify a relaxation of the means of defense adopted during the last session of Congress, the happy result of which is so strongly and generally marked. If the force by sea and land which the existing laws authorize should be judged inadequate to the

public defense, we will perform the indispensable duty of bringing forward such other acts as will effectually call forth the resources and force of our country.

A steady adherence to this wise and manly policy, a proper direction of the noble spirit of patriotism which has arisen in our country, and which ought to be cherished and invigorated by every branch of the Government, will secure our liberty and independence against all open and secret attacks.

We enter on the business of the present session with an anxious solicitude for the public good, and shall bestow that consideration on the several objects pointed out in your communication which they respectively merit.

Your long and important services, your talents and firmness, so often displayed in the most trying times and most critical situations, afford a sure pledge of a zealous cooperation in every measure necessary to secure us justice and respect,

JOHN LAURANCE,
President of the Senate pro tempore.

DECEMBER 11, 1798.

REPLY OF THE PRESIDENT.

DECEMBER 12, 1798.

To the Senate of the United States.

GENTLEMEN: I thank you for this address, so conformable to the spirit of our Constitution and the established character of the Senate of the United States for wisdom, honor, and virtue.

I have seen no real evidence of any change of system or disposition in the French Republic toward the United States. Although the officious interference of individuals without public character or authority is not

entitled to any credit, yet it deserves to be considered whether that temerity and impertinence of individuals affecting to interfere in public affairs between France and the United States, whether by their secret correspondence or otherwise, and intended to impose upon the people and separate them from their Government, ought not to be inquired into and corrected.

I thank you, gentlemen, for your assurances that you will bestow that consideration on the several objects pointed out in my communication which they respectively merit.

If I have participated in that understanding, sincerity, and constancy which have been displayed by my fellow-citizens and countrymen in the most trying times and critical situations, and fulfilled my duties to them, I am happy. The testimony of the Senate of the United States in my favor is an high and honorable reward, which receives, as it merits, my grateful acknowledgments. My zealous cooperation in measures necessary to secure us justice and consideration may be always depended on.

JOHN ADAMS.

ADDRESS OF THE HOUSE OF REPRESENTATIVES TO JOHN ADAMS, PRESIDENT OF THE UNITED STATES.

JOHN ADAMS,
President of the United States.

SIR: The House of Representatives unite with you in deploring the effects of the desolating malady by which the seat of Government and other parts of our country have recently been visited. In calling our attention to the fatality of its repeated ravages and inviting us to consider the expediency of exercising our constitutional powers in aid of the health laws of the respective States, your recommendation is sanctioned by the dictates of humanity and liberal policy. On this interesting subject we feel the necessity of adopting every wise expedient for preventing a calamity so

distressing to individual sufferers and so prejudicial to our national commerce.

That our finances are in a prosperous state notwithstanding the commercial derangements resulting from this calamity and from external embarrassments is a satisfactory manifestation of the great extent and solidity of the public resources. Connected with this situation of our fiscal concerns, the assurance that the legal provisions for obtaining revenue by direct taxation will fulfill the views of the Legislature is peculiarly acceptable.

Desirous as we are that all causes of hostility may be removed by the amicable adjustment of national differences, we learn with satisfaction that in pursuance of our treaties with Spain and with Great Britain advances have been made for definitively settling the controversies relative to the southern and northeastern limits of the United States. With similar sentiments have we received your information that the proceedings under commissions authorized by the same treaties afford to a respectable portion of our citizens the prospect of a final decision on their claims for maritime injuries committed by subjects of those powers.

It would be the theme of mutual felicitation were we assured of experiencing similar moderation and justice from the French Republic, between which and the United States differences have unhappily arisen; but this is denied us by the ultimate failure of the measures which have been taken by this Government toward an amicable adjustment of those differences and by the various inadmissible pretensions on the part of that nation.

The continuing in force the decree of January last, to which you have more particularly pointed our attention, ought of itself to be considered as demonstrative of the real intentions of the French Government. That decree proclaims a predatory warfare against the unquestionable rights of neutral commerce which with our means of defense our interest and our honor command us to repel. It therefore now becomes the United States to be as determined in resistance as they have been patient in suffering and condescending in negotiation.

While those who direct the affairs of France persist in the enforcement of decrees so hostile to our essential rights, their conduct forbids us to confide in any of their professions of amity.

As, therefore, the conduct of France hitherto exhibits nothing which ought to change or relax our measures of defense, the policy of extending and invigorating those measures demands our sedulous attention. The sudden and remarkable advantages which this country has experienced from a small naval armament sufficiently prove the utility of its establishment. As it respects the guarding of our coast, the protection of our trade, and the facility of safely transporting the means of territorial defense to every part of our maritime frontier, an adequate naval force must be considered as an important object of national policy. Nor do we hesitate to adopt the opinion that, whether negotiations with France are resumed or not, vigorous preparations for war will be alike indispensable.

In this conjuncture of affairs, while with you we recognize our abundant cause of gratitude to the Supreme Disposer of Events for the ordinary blessings of Providence, we regard as of high national importance the manifestation in our country of a magnanimous spirit of resistance to foreign domination. This spirit merits to be cherished and invigorated by every branch of Government as the estimable pledge of national prosperity and glory.

Disdaining a reliance on foreign protection, wanting no foreign guaranty of our liberties, resolving to maintain our national independence against every attempt to despoil us of this inestimable treasure, we confide under Providence in the patriotism and energies of the people of these United States for defeating the hostile enterprises of any foreign power.

To adopt with prudent foresight such systematical measures as may be expedient for calling forth those energies wherever the national exigencies may require, whether on the ocean or on our own territory, and to reconcile with the proper security of revenue the convenience of mercantile enterprise, on which so great a proportion of the public resources depends, are objects of moment which shall be duly regarded in the course of our deliberations.

Fully as we accord with you in the opinion that the United States ought not to submit to the humiliation of sending another minister to France without previous assurances sufficiently determinate that he will be duly accredited, we have heard with cordial approbation the declaration of your purpose steadily to observe those maxims of humane and pacific policy by which the United States have hitherto been governed. While it is left with France to take the requisite steps for accommodation, it is worthy the Chief Magistrate of a free people to make known to the world that justice on the part of France will annihilate every obstacle to the restoration of a friendly intercourse, and that the Executive authority of this country will respect the sacred rights of embassy. At the same time, the wisdom and decision which have characterized your past Administration assure us that no illusory professions will seduce you into any abandonment of the rights which belong to the United States as a free and independent nation.

December 13, 1798.

REPLY OF THE PRESIDENT.

DECEMBER 14, 1798.

To the House of Representatives of the United States of America.

GENTLEMEN: My sincere acknowledgments are due to the House of Representatives of the United States for this excellent address so consonant to the character of representatives of a great and free people. The judgment and feelings of a nation, I believe, were never more truly expressed by their representatives than those of our constituents by your decided declaration that with our means of defense our interest and honor command us to repel a predatory warfare against the unquestionable rights of neutral commerce; that it becomes the United States to be as determined in resistance as they have been patient in suffering and condescending in negotiation; that while those who direct the affairs of France persist in the enforcement of decrees so hostile to our essential rights their conduct forbids us to confide in any of their professions of amity; that an adequate naval force must be considered

as an important object of national policy, and that, whether negotiations with France are resumed or not, vigorous preparations for war will be alike indispensable.

The generous disdain you so coolly and deliberately express of a reliance on foreign protection, wanting no foreign guaranty of our liberties, resolving to maintain our national independence against every attempt to despoil us of this inestimable treasure, will meet the full approbation of every sound understanding and exulting applauses from the heart of every faithful American.

I thank you, gentlemen, for your candid approbation of my sentiments on the subject of negotiation and for the declaration of your opinion that the policy of extending and invigorating our measures of defense and the adoption with prudent foresight of such systematical measures as may be expedient for calling forth the energies of our country wherever the national exigencies may require, whether on the ocean or on our own territory, will demand your sedulous attention.

At the same time, I take the liberty to assure you it shall be my vigilant endeavor that no illusory professions shall seduce me into any abandonment of the rights which belong to the United States as a free and independent nation.

JOHN ADAMS.

SPECIAL MESSAGES.

JANUARY 8, 1799.

Gentlemen of the House of Representatives:

In compliance with your desire expressed in your resolution of the 2d of this month, I lay before you an extract of a letter from George C. Moreton, acting consul of the United States at The Havannah, dated the 13th of November, 1798, to the Secretary of State, with a copy of a letter from him to L. Tresevant and William Timmons, esquires, with their answer.

Although your request extends no further than such information as has been received, yet it may be a satisfaction to you to know that as soon as this intelligence was communicated to me circular orders were given by my direction to all the commanders of our vessels of war, a copy of which is also herewith transmitted. I also directed this intelligence and these orders to be communicated to His Britannic Majesty's envoy extraordinary and minister plenipotentiary to the United States and to our minister plenipotentiary to the Court of Great Britain, with instructions to him to make the proper representation to that Government upon this subject.

It is but justice to say that this is the first instance of misbehavior of any of the British officers toward our vessels of war that has come to my knowledge. According to all the representations that I have seen, the flag of the United States and their officers and men have been treated by the civil and military authority of the British nation in Nova Scotia, the West India islands, and on the ocean with uniform civility, politeness, and friendship. I have no doubt that this first instance of misconduct will be readily corrected.

JOHN ADAMS.

JANUARY 15, 1799.

Gentlemen of the Senate:

I transmit to you the treaty between the United States and the Cherokee Indians, signed near Tellico on the 2d day of October, 1798, for your consideration. I have directed the Secretary of War to lay before you the journal of the commissioners and a copy of their instructions.

JOHN ADAMS.

JANUARY 18, 1799.

Gentlemen of the Senate and Gentlemen of the House of Representatives:

The communication relative to our affairs with France alluded to in my address to both Houses at the opening of the session is contained in the sheets which accompany this. A report of the Secretary of State, containing some observations on them, will be sent to Congress on Monday.

JOHN ADAMS.

JANUARY 28, 1799.

Gentlemen of the Senate and Gentlemen of the House of Representatives:

An edict of the Executive Directory of the French Republic of the 29th of October, 1798, inclosed in a letter from our minister plenipotentiary in London of the 16th of November, is of so much importance that it can not be too soon communicated to you and the public.

JOHN ADAMS.

FEBRUARY 6, 1799.

Gentlemen of the Senate:

In consequence of intimations from the Court of Russia to our minister plenipotentiary at the Court of Great Britain of the desire of that power to have a treaty of amity and commerce with the United States, and that the negotiation might be conducted in London, I nominate Rufus King, our minister plenipotentiary at the Court of Great Britain, to be a minister plenipotentiary for the special purpose of negotiating with any minister of equal rank and powers a treaty of amity and commerce between the United States and the Emperor of all the Russias.

JOHN ADAMS.

UNITED STATES, *February 15, 1799.*

Gentlemen of the House of Representatives:

In pursuance of the request in your resolve of yesterday, I lay before you such information as I have received touching a suspension of the arrêt of the French Republic, communicated to your House by my message of the 28th of January last. But if the execution of that arrêt be suspended, or even if it were repealed, it should be remembered that the arrêt of the Executive Directory of the 2d of March, 1797, remains in force, the third article of which subjects, explicitly and exclusively, American seamen to be treated as pirates if found on board ships of the enemies of France.

JOHN ADAMS.

FEBRUARY 18, 1799.

Gentlemen of the Senate:

I transmit to you a document which seems to be intended to be a compliance with a condition mentioned at the conclusion of my message to Congress of the 21st of June last.

Always disposed and ready to embrace every plausible appearance of probability of preserving or restoring tranquillity, I nominate William Vans Murray, our minister resident at The Hague, to be minister plenipotentiary of the United States to the French Republic.

If the Senate shall advise and consent to his appointment, effectual care shall be taken in his instructions that he shall not go to France without direct and unequivocal assurances from the French Government, signified by their minister of foreign relations, that he shall be received in character, shall enjoy the privileges attached to his character by the law of nations, and that a minister of equal rank, title, and powers shall be appointed to treat with him, to discuss and conclude all controversies between the two Republics by a new treaty.

JOHN ADAMS.

[Translation.]

PARIS, the 7th Vendémiaire of the 7th Year of the French Republic, One and Indivisible.

The Minister of Exterior Relations to Citizen Pichon, Secretary of Legation of the French Republic near the Batavian Republic:

I have received successively, Citizen, your letters of the 22d and 27th Fructidor [8th and 13th September]. They afford me more and more reason to be pleased with the measure you have adopted, to detail to me your conversations with Mr. Murray. These conversations, at first merely friendly, have acquired consistency by the sanction I have given to them by my letter of the 11th Fructidor. I do not regret that you have trusted to Mr. Murray's honor a copy of my letter. It was intended for you only, and

contains nothing but what is conformable to the intentions of Government. I am thoroughly convinced that should explanations take place with confidence between the two Cabinets, irritation would cease, a crowd of misunderstandings would disappear, and the ties of friendship would be the more strongly united as each party would discover the hand which sought to disunite them. But I will not conceal from you that your letters of the 2d and 3d Vendémiaire, just received, surprised me much. What Mr. Murray is still dubious of has been very explicitly declared, even before the President's message to Congress of the 3d Messidor [21st June] last was known in France. I had written it to Mr. Gerry, namely, on the 24th Messidor and 4th Thermidor; I did repeat it to him before he sat out. A whole paragraph of my letter to you of the 11th Fructidor, of which Mr. Murray has a copy, is devoted to develop still more the fixed determination of the French Government. According to these bases, you were right to assert that whatever plenipotentiary the Government of the United States might send to France to put an end to the existing differences between the two countries would be undoubtedly received with the respect due to the representative of a free, independent, and powerful nation.

I can not persuade myself, Citizen, that the American Government need any further declarations from us to induce them, in order to renew the negotiations, to adopt such measures as would be suggested to them by their desire to bring the differences to a peaceable end. If misunderstandings on both sides have prevented former explanations from reaching that end, it is presumable that, those misunderstandings being done away, nothing henceforth will bring obstacles to the reciprocal dispositions. The President's instructions to his envoys at Paris, which I have only known by the copy given you by Mr. Murray, and received by me the 21st Messidor [9th July], announce, if they contain the whole of the American Government's intentions, dispositions which could only have added to those which the Directory has always entertained; and, notwithstanding the posterior acts of that Government, notwithstanding the irritating and almost hostile measures they have adopted, the Directory has manifested its perseverance in the sentiments which are deposited both in my correspondence with Mr. Gerry and in my letter to you of the 11th Fructidor, and which I have hereinbefore repeated in the most explicit manner. Carry, therefore, Citizen, to Mr. Murray those positive expressions

in order to convince him of our sincerity, and prevail upon him to transmit them to his Government.

I presume, Citizen, that this letter will find you at The Hague; if not, I ask it may be sent back to you at Paris.

Salute and fraternity,

CH: MAU: TALLEYRAND.

FEBRUARY 25, 1799.

Gentlemen of the Senate:

The proposition of a fresh negotiation with France in consequence of advances made by the French Government has excited so general an attention and so much conversation as to have given occasion to many manifestations of the public opinion, from which it appears to me that a new modification of the embassy will give more general satisfaction to the legislature and to the nation, and perhaps better answer the purposes we have in view.

It is upon this supposition and with this expectation that I now nominate Oliver Ellsworth, esq., Chief Justice of the United States; Patrick Henry, esq., late governor of Virginia, and William Vans Murray, esq., our minister resident at The Hague, to be envoys extraordinary and ministers plenipotentiary to the French Republic, with full powers to discuss and settle by a treaty all controversies between the United States and France.

It is not intended that the two former of these gentlemen shall embark for Europe until they shall have received from the Executive Directory assurances, signified by their secretary of foreign relations, that they shall be received in character, that they shall enjoy all the prerogatives attached to that character by the law of nations, and that a minister or ministers of equal powers shall be appointed and commissioned to treat with them.

JOHN ADAMS.

MARCH 2, 1799.

Gentlemen of the Senate and Gentlemen of the House of Representatives:

Judging it of importance to the public that the Legislature should be informed of the gradual progress of their maritime resources, I transmit to Congress a statement of the vessels, with their tonnage, warlike force, and complement of men, to which commissions as private armed vessels have been issued since the 9th day of July last.

JOHN ADAMS.

PROCLAMATIONS.

[From C. F. Adams's Works of John Adams, Vol. IX, p. 172.]

PROCLAMATION.

MARCH 6, 1799.

As no truth is more clearly taught in the Volume of Inspiration, nor any more fully demonstrated by the experience of all ages, than that a deep sense and a due acknowledgment of the governing providence of a Supreme Being and of the accountableness of men to Him as the searcher of hearts and righteous distributor of rewards and punishments are conducive equally to the happiness and rectitude of individuals and to the well-being of communities; as it is also most reasonable in itself that men who are made capable of social acts and relations, who owe their improvements to the social state, and who derive their enjoyments from it, should, as a society, make their acknowledgments of dependence and obligation to Him who hath endowed them with these capacities and elevated them in the scale of existence by these distinctions; as it is likewise a plain dictate of duty and a strong sentiment of nature that in circumstances of great urgency and seasons of imminent danger earnest and particular supplications should be made to Him who is able to defend or to destroy; as, moreover, the most precious interests of the people of the United States are still held in jeopardy by the hostile designs and insidious acts of a foreign nation, as well as by the dissemination among them of those principles, subversive of the foundations of all religious, moral, and social obligations, that have produced incalculable mischief and misery in other countries; and as, in fine, the observance of special seasons for public religious solemnities is happily calculated to avert the evils which we ought to deprecate and to excite to the performance of the duties which we ought to discharge by calling and fixing the attention of the people at large to the momentous truths already recited, by affording opportunity to teach and inculcate them by animating devotion and giving to it the character of a national act:

For these reasons I have thought proper to recommend, and I do hereby recommend accordingly, that Thursday, the 25th day of April next, be observed throughout the United States of America as a day of solemn humiliation, fasting, and prayer; that the citizens on that day abstain as far as may be from their secular occupations, devote the time to the sacred duties of religion in public and in private; that they call to mind our numerous offenses against the Most High God, confess them before Him with the sincerest penitence, implore His pardoning mercy, through the Great Mediator and Redeemer, for our past transgressions, and that through the grace of His Holy Spirit we may be disposed and enabled to yield a more suitable obedience to His righteous requisitions in time to come; that He would interpose to arrest the progress of that impiety and licentiousness in principle and practice so offensive to Himself and so ruinous to mankind; that He would make us deeply sensible that "righteousness exalteth a nation, but sin is a reproach to any people;" that He would turn us from our transgressions and turn His displeasure from us; that He would withhold us from unreasonable discontent, from disunion, faction, sedition, and insurrection; that He would preserve our country from the desolating sword; that He would save our cities and towns from a repetition of those awful pestilential visitations under which they have lately suffered so severely, and that the health of our inhabitants generally may be precious in His sight; that He would favor us with fruitful seasons and so bless the labors of the husbandman as that there may be food in abundance for man and beast; that He would prosper our commerce, manufactures, and fisheries, and give success to the people in all their lawful industry and enterprise; that He would smile on our colleges, academies, schools, and seminaries of learning, and make them nurseries of sound science, morals, and religion; that He would bless all magistrates, from the highest to the lowest, give them the true spirit of their station, make them a terror to evil doers and a praise to them that do well; that He would preside over the councils of the nation at this critical period, enlighten them to a just discernment of the public interest, and save them from mistake, division, and discord; that He would make succeed our preparations for defense and bless our armaments by land and by sea; that He would put an end to the effusion of human blood and the accumulation of human misery among the contending nations of the earth by disposing them to justice, to equity, to benevolence, and to

peace; and that he would extend the blessings of knowledge, of true liberty, and of pure and undefiled religion throughout the world.

And I do also recommend that with these acts of humiliation, penitence, and prayer fervent thanksgiving to the Author of All Good be united for the countless favors which He is still continuing to the people of the United States, and which render their condition as a nation eminently happy when compared with the lot of others.

Given, etc,

JOHN ADAMS.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas combinations to defeat the execution of the laws for the valuation of lands and dwelling houses within the United States have existed in the counties of Northampton, Montgomery, and Bucks, in the State of Pennsylvania, and have proceeded in a manner subversive of the just authority of the Government, by misrepresentations, to render the laws odious, by deterring the public officers of the United States to forbear the execution of their functions, and by openly threatening their lives; and

Whereas the endeavors of the well-affected citizens, as well as of the executive officers, to conciliate a compliance with those laws have failed of success, and certain persons in the county of Northampton aforesaid have been hardy enough to perpetrate certain acts which I am advised amount to treason, being overt acts of levying war against the United States, the said persons, exceeding one hundred in number and armed and arrayed in a warlike manner, having, on the 7th day of this present month of March, proceeded to the house of Abraham Lovering, in the town of Bethlehem, and there compelled William Nichols, marshal of the United States in and

for the district of Pennsylvania, to desist from the execution of certain legal process in his hands to be executed, and having compelled him to discharge and set at liberty certain persons whom he had arrested by virtue of criminal process duly issued for offenses against the United States, and having impeded and prevented the commissioner and the assessors, appointed in conformity with the laws aforesaid, in the county of Northampton aforesaid, by threats and personal injury, from executing the said laws, avowing as the motives of these illegal and treasonable proceedings an intention to prevent by force of arms the execution of the said laws and to withstand by open violence the lawful authority of the Government of the United States; and

Whereas by the Constitution and laws of the United States I am authorized, whenever the laws of the United States shall be opposed or the execution thereof obstructed in any State by combinations too powerful to be suppressed by the ordinary course of judicial proceedings or by the powers vested in the marshals, to call forth military force to suppress such combinations and to cause the laws to be duly executed; and

Whereas it is in my judgment necessary to call forth military force in order to suppress the combinations aforesaid and to cause the laws aforesaid to be duly executed, and I have accordingly determined so to do, under the solemn conviction that the essential interests of the United States demand it:

Wherefore I, John Adams, President of the United States, do hereby command all persons being insurgents as aforesaid, and all others whom it may concern, on or before Monday next, being the 18th day of this present month, to disperse and retire peaceably to their respective abodes; and I do moreover warn all persons whomsoever against aiding, abetting, or comforting the perpetrators of the aforesaid treasonable acts; and I do require all officers and others, good and faithful citizens, according to their respective duties and the laws of the land, to exert their utmost endeavors to prevent and suppress such dangerous and unlawful proceedings.

In testimony whereof I have caused the seal of the United States of America to be affixed to these presents, and signed the same with my hand.

[SEAL.]

Done at the city of Philadelphia, the 12th day of March, A.D. 1799, and of the Independence of the said United States of America the twenty-third.

JOHN ADAMS.

By the President:
TIMOTHY PICKERING,
Secretary of State.

[From, a broadside in the archives of the Department of State.]

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas by an act of the Congress of the United States passed the 9th day of February last, entitled "An act further to suspend the commercial intercourse between the United States and France and the dependencies thereof," it is provided that at any time after the passing of this act it shall be lawful for the President of the United States, if he shall deem it expedient and consistent with the interests of the United States, by his order to remit and discontinue for the time being the restraints and prohibitions by the said act imposed, either with respect to the French Republic or to any island, port, or place belonging to the said Republic with which a commercial intercourse may safely be renewed, and also to revoke such order whenever, in his opinion, the interest of the United States shall require; and he is authorized to make proclamation thereof accordingly; and

Whereas the arrangements which have been made at St. Domingo for the safety of the commerce of the United States and for the admission of American vessels into certain ports of that island do, in my opinion, render it expedient and for the interest of the United States to renew a commercial intercourse with such ports:

Therefore I, John Adams, President of the United States, by virtue of the powers vested in me by the above-recited act, do hereby remit and discontinue the restraints and prohibitions therein contained within the limits and under the regulations here following, to wit:

1. It shall be lawful for vessels which have departed or may depart from the United States to enter the ports of Cape François and Port Republicain, formerly called Port-au-Prince, in the said island of St. Domingo, on and after the 1st day of August next.

2. No vessel shall be cleared for any other port in St. Domingo than Cape François and Port Republicain.

3. It shall be lawful for vessels which shall enter the said ports of Cape François and Port Republicain after the 31st day of July next to depart from thence to any other port in said island between Monte Christi on the north and Petit Goave on the west; provided it be done with the consent of the Government of St. Domingo and pursuant to certificates or passports expressing such consent, signed by the consul-general of the United States or consul residing at the port of departure.

4. All vessels sailing in contravention of these regulations will be out of the protection of the United States and be, moreover, liable to capture, seizure, and confiscation.

[SEAL.]

Given under my hand and the seal of the United States, at Philadelphia, the 26th day of June, A.D. 1799, and of the Independence of the said States the twenty-third.

JOHN ADAMS.

By the President:
TIMOTHY PICKERING,
Secretary of State.

THIRD ANNUAL ADDRESS.

UNITED STATES, *December 3, 1799.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

It is with peculiar satisfaction that I meet the Sixth Congress of the United States of America. Coming from all parts of the Union at this critical and interesting period, the members must be fully possessed of the sentiments and wishes of our constituents.

The flattering prospects of abundance from the labors of the people by land and by sea; the prosperity of our extended commerce, notwithstanding interruptions occasioned by the belligerent state of a great part of the world; the return of health, industry, and trade to those cities which have lately been afflicted with disease, and the various and inestimable advantages, civil and religious, which, secured under our happy frame of government, are continued to us unimpaired, demand of the whole American people sincere thanks to a benevolent Deity for the merciful dispensations of His providence.

But while these numerous blessings are recollected, it is a painful duty to advert to the ungrateful return which has been made for them by some of the people in certain counties of Pennsylvania, where, seduced by the arts and misrepresentations of designing men, they have openly resisted the law directing the valuation of houses and lands. Such defiance was given to the civil authority as rendered hopeless all further attempts by judicial process to enforce the execution of the law, and it became necessary to direct a military force to be employed, consisting of some companies of regular troops, volunteers, and militia, by whose zeal and activity, in cooperation with the judicial power, order and submission were restored and many of the offenders arrested. Of these, some have been convicted of misdemeanors, and others, charged with various crimes, remain to be tried.

To give due effect to the civil administration of Government and to insure a just execution of the laws, a revision and amendment of the judiciary

system is indispensably necessary. In this extensive country it can not but happen that numerous questions respecting the interpretation of the laws and the rights and duties of officers and citizens must arise. On the one hand, the laws should be executed; on the other, individuals should be guarded from oppression. Neither of these objects is sufficiently assured under the present organization of the judicial department. I therefore earnestly recommend the subject to your serious consideration.

Persevering in the pacific and humane policy which had been invariably professed and sincerely pursued by the Executive authority of the United States, when indications were made on the part of the French Republic of a disposition to accommodate the existing differences between the two countries, I felt it to be my duty to prepare for meeting their advances by a nomination of ministers upon certain conditions which the honor of our country dictated, and which its moderation had given it a right to prescribe. The assurances which were required of the French Government previous to the departure of our envoys have been given through their minister of foreign relations, and I have directed them to proceed on their mission to Paris. They have full power to conclude a treaty, subject to the constitutional advice and consent of the Senate. The characters of these gentlemen are sure pledges to their country that nothing incompatible with its honor or interest, nothing inconsistent with our obligations of good faith or friendship to any other nation, will be stipulated.

It appearing probable from the information I received that our commercial intercourse with some ports in the island of St. Domingo might safely be renewed, I took such steps as seemed to me expedient to ascertain that point. The result being satisfactory, I then, in conformity with the act of Congress on the subject, directed the restraints and prohibitions of that intercourse to be discontinued on terms which were made known by proclamation. Since the renewal of this intercourse our citizens trading to those ports, with their property, have been duly respected, and privateering from those ports has ceased.

In examining the claims of British subjects by the commissioners at Philadelphia, acting under the sixth article of the treaty of amity, commerce, and navigation with Great Britain, a difference of opinion on points deemed essential in the interpretation of that article has arisen between the

commissioners appointed by the United States and the other members of that board, from which the former have thought it their duty to withdraw. It is sincerely to be regretted that the execution of an article produced by a mutual spirit of amity and justice should have been thus unavoidably interrupted. It is, however, confidently expected that the same spirit of amity and the same sense of justice in which it originated will lead to satisfactory explanations. In consequence of the obstacles to the progress of the commission in Philadelphia, His Britannic Majesty has directed the commissioners appointed by him under the seventh article of the treaty relating to the British captures of American vessels to withdraw from the board sitting in London, but with the express declaration of his determination to fulfill with punctuality and good faith the engagements which His Majesty has contracted by his treaty with the United States, and that they will be instructed to resume their functions whenever the obstacles which impede the progress of the commission at Philadelphia shall be removed. It being in like manner my sincere determination, so far as the same depends on me, that with equal punctuality and good faith the engagements contracted by the United States in their treaties with His Britannic Majesty shall be fulfilled, I shall immediately instruct our minister at London to endeavor to obtain the explanations necessary to a just performance of those engagements on the part of the United States. With such dispositions on both sides, I can not entertain a doubt that all difficulties will soon be removed and that the two boards will then proceed and bring the business committed to them respectively to a satisfactory conclusion.

The act of Congress relative to the seat of the Government of the United States requiring that on the first Monday of December next it should be transferred from Philadelphia to the District chosen for its permanent seat, it is proper for me to inform you that the commissioners appointed to provide suitable buildings for the accommodation of Congress and of the President and of the public offices of the Government have made a report of the state of the buildings designed for those purposes in the city of Washington, from which they conclude that the removal of the seat of Government to that place at the time required will be practicable and the accommodation satisfactory. Their report will be laid before you.

Gentlemen of the House of Representatives:

I shall direct the estimates of the appropriations necessary for the service of the ensuing year, together with an account of the revenue and expenditure, to be laid before you. During a period in which a great portion of the civilized world has been involved in a war unusually calamitous and destructive, it was not to be expected that the United States could be exempted from extraordinary, burthens. Although the period is not arrived when the measures adopted to secure our country against foreign attacks can be renounced, yet it is alike necessary for the honor of the Government and the satisfaction of the community that an exact economy should be maintained. I invite you, gentlemen, to investigate the different branches of the public expenditure. The examination will lead to beneficial retrenchments or produce a conviction of the wisdom of the measures to which the expenditure relates.

Gentlemen of the Senate and Gentlemen of the House of Representatives:

At a period like the present, when momentous changes are occurring and every hour is preparing new and great events in the political world, when a spirit of war is prevalent in almost every nation with whose affairs the interests of the United States have any connection, unsafe and precarious would be our situation were we to neglect the means of maintaining our just rights. The result of the mission to France is uncertain; but however it may terminate, a steady perseverance in a system of national defense commensurate with our resources and the situation of our country is an obvious dictate of wisdom; for, remotely as we are placed from the belligerent nations, and desirous as we are, by doing justice to all, to avoid offense to any, nothing short of the power of repelling aggressions will secure to our country a rational prospect of escaping the calamities of war or national degradation. As to myself, it is my anxious desire so to execute the trust reposed in me as to render the people of the United States prosperous and happy. I rely with entire confidence on your cooperation in objects equally your care, and that our mutual labors will serve to increase and confirm union among our fellow-citizens and an unshaken attachment to our Government.

JOHN ADAMS.

ADDRESS OF THE SENATE TO JOHN ADAMS, PRESIDENT OF THE UNITED STATES.

The PRESIDENT OF THE UNITED STATES:

Accept, sir, the respectful acknowledgments of the Senate of the United States for your speech delivered to both Houses of Congress at the opening of the present session.

While we devoutly join you in offering our thanks to Almighty God for the return of health to our cities and for the general prosperity of the country, we can not refrain from lamenting that the arts and calumnies of factious, designing men have excited open rebellion a second time in Pennsylvania, and thereby compelled the employment of a military force to aid the civil authority in the execution of the laws. We rejoice that your vigilance, energy, and well-timed exertions have crushed so daring an opposition and prevented the spreading of such treasonable combinations. The promptitude and zeal displayed by the troops called to suppress this insurrection deserve our highest commendation and praise, and afford a pleasing proof of the spirit and alacrity with which our fellow-citizens are ready to maintain the authority of our excellent Government.

Knowing as we do that the United States are sincerely anxious for a fair and liberal execution of the treaty of amity, commerce, and navigation entered into with Great Britain, we learn with regret that the progress of adjustment has been interrupted by a difference of opinion among the commissioners. We hope, however, that the justice, the moderation, and the obvious interests of both parties will lead to satisfactory explanations, and that the business will then go forward to an amicable close of all differences and demands between the two countries. We are fully persuaded that the Legislature of the United States will cheerfully enable you to realize your assurances of performing on our part all engagements under our treaties with punctuality and the most scrupulous good faith.

When we reflect upon the uncertainty of the result of the late mission to France and upon the uncommon nature, extent, and aspect of the war now

raging in Europe, which affects materially our relations with the powers at war, and which has changed the condition of their colonies in our neighborhood, we are of opinion with you that it would be neither wise nor safe to relax our measures of defense or to lessen any of our preparations to repel aggression.

Our inquiries and attention shall be carefully directed to the various other important subjects which you have recommended to our consideration, and from our experience of your past Administration we anticipate with the highest confidence your strenuous cooperation in all measures which have a tendency to promote and extend our national interests and happiness.

SAMUEL LIVERMORE,
President of the Senate pro tempore.

DECEMBER 9, 1799.

REPLY OF THE PRESIDENT.

UNITED STATES, *December 10, 1799.*

Gentlemen of the Senate:

I thank you for this address. I wish you all possible success and satisfaction in your deliberations on the means which have a tendency to promote and extend our national interests and happiness, and I assure you that in all your measures directed to those great objects you may at all times rely with the highest confidence on my cordial cooperation.

The praise of the Senate, so judiciously conferred on the promptitude and zeal of the troops called to suppress the insurrection, as it falls from so high authority, must make a deep impression, both as a terror to the disobedient and an encouragement of such as do well.

JOHN ADAMS.

ADDRESS OF THE HOUSE OF REPRESENTATIVES TO JOHN ADAMS, PRESIDENT OF THE UNITED STATES

The PRESIDENT OF THE UNITED STATES.

SIR: While the House of Representatives contemplate the flattering prospects of abundance from the labors of the people by land and by sea, the prosperity of our extended commerce notwithstanding the interruptions occasioned by the belligerent state of a great part of the world, the return of health, industry, and trade to those cities which have lately been afflicted with disease, and the various and inestimable advantages, civil and religious, which, secured under our happy frame of Government, are continued to us unimpaired, we can not fail to offer up to a benevolent Deity our sincere thanks for these the merciful dispensations of His protecting providence.

That any portion of the people of America should permit themselves, amid such numerous blessings, to be seduced by the arts and misrepresentations of designing men into an open resistance of a law of the United States can not be heard without deep and serious regret. Under a Constitution where the public burthens can only be imposed by the people themselves for their own benefit and to promote their own objects, a hope might well have been indulged that the general interest would have been too well understood and the general welfare too highly prized to have produced in any of our citizens a disposition to hazard so much felicity by the criminal effort of a part to oppose with lawless violence the will of the whole. While we lament that depravity which could produce a defiance of the civil authority and render indispensable the aid of the military force of the nation, real consolation is to be derived from the promptness and fidelity with which that aid was afforded. That zealous and active cooperation with the judicial power of the volunteers and militia called into service, which has restored order and submission to the laws, is a pleasing evidence of the attachment of our fellow-citizens to their own free

Government, and of the truly patriotic alacrity with which they will support it.

To give due effect to the civil administration of Government and to insure a just execution of the laws are objects of such real magnitude as to secure a proper attention to your recommendation of a revision and amendment of the judiciary system.

Highly approving as we do the pacific and humane policy which has been invariably professed and sincerely pursued by the Executive authority of the United States, a policy which our best interests enjoined, and of which honor has permitted the observance, we consider as the most unequivocal proof of your inflexible perseverance in the same well-chosen system your preparation to meet the first indications on the part of the French Republic of a disposition to accommodate the existing differences between the two countries by a nomination of ministers, on certain conditions which the honor of our country unquestionably dictated, and which its moderation had certainly given it a right to prescribe. When the assurances thus required of the French Government, previous to the departure of our envoys, had been given through their minister of foreign relations, the direction that they should proceed on their mission was on your part a completion of the measure, and manifests the sincerity with which it was commenced. We offer up our fervent prayers to the Supreme Ruler of the Universe for the success of their embassy, and that it may be productive of peace and happiness to our common country. The uniform tenor of your conduct through a life useful to your fellow-citizens and honorable to yourself gives a sure pledge of the sincerity with which the avowed objects of the negotiation will be pursued on your part, and we earnestly pray that similar dispositions may be displayed on the part of France. The differences which unfortunately subsist between the two nations can not fail in that event to be happily terminated. To produce this end, to all so desirable, firmness, moderation, and union at home constitute, we are persuaded, the surest means. The character of the gentlemen you have deputed, and still more the character of the Government which deposes them, are safe pledges to their country that nothing incompatible with its honor or interest, nothing inconsistent with our obligations of good faith or friendship to any other nation, will be stipulated.

We learn with pleasure that our citizens, with their property, trading to those ports of St. Domingo with which commercial intercourse has been renewed have been duly respected, and that privateering from those ports has ceased.

With you we sincerely regret that the execution of the sixth article of the treaty of amity, commerce, and navigation with Great Britain, an article produced by a mutual spirit of amity and justice, should have been unavoidably interrupted. We doubt not that the same spirit of amity and the same sense of justice in which it originated will lead to satisfactory explanations, and we hear with approbation that our minister at London will be immediately instructed to obtain them. While the engagements which America has contracted by her treaty with Great Britain ought to be fulfilled with that scrupulous punctuality and good faith to which our Government has ever so tenaciously adhered, yet no motive exists to induce, and every principle forbids us to adopt, a construction which might extend them beyond the instrument by which they are created. We cherish the hope that the Government of Great Britain will disclaim such extension, and by cordially uniting with that of the United States for the removal of all difficulties will soon enable the boards appointed under the sixth and seventh articles of our treaty with that nation to proceed and bring the business committed to them respectively to a satisfactory conclusion.

The buildings for the accommodation of Congress and of the President and for the public offices of the Government at its permanent seat being in such a state as to admit of a removal to that District by the time prescribed by the act of Congress, no obstacle, it is presumed, will exist to a compliance with the law.

With you, sir, we deem the present period critical and momentous. The important changes which are occurring, the new and great events which are every hour preparing in the political world, the spirit of war which is prevalent in almost every nation with whose affairs the interests of the United States have any connection, demonstrate how unsafe and precarious would be our situation should we neglect the means of maintaining our just rights. Respecting, as we have ever done, the rights of others, America estimates too correctly the value of her own and has received evidence too complete that they are only to be preserved by her own vigilance ever to

permit herself to be seduced by a love of ease or by other considerations into that deadly disregard of the means of self-defense which could only result from a carelessness as criminal as it would be fatal concerning the future destinies of our growing Republic. The result of the mission to France is indeed, sir, uncertain. It depends not on America alone. The most pacific temper will not always insure peace. We should therefore exhibit a system of conduct as indiscreet as it would be new in the history of the world if we considered the negotiation happily terminated because we have attempted to commence it, and peace restored because we wish its restoration. But, sir, however this mission may terminate, a steady perseverance in a system of national defense commensurate with our resources and the situation of our country is an obvious dictate of duty. Experience, the parent of wisdom and the great instructor of nations, has established the truth of your position, that, remotely as we are placed from the belligerent nations and desirous as we are, by doing justice to all, to avoid offense to any, yet nothing short of the power of repelling aggressions will secure to our country a rational prospect of escaping the calamities of war or national degradation.

In the progress of the session we shall take into our serious consideration the various and important matters recommended to our attention.

A life devoted to the service of your country, talents and integrity which have so justly acquired and so long retained the confidence and affection of your fellow-citizens, attest the sincerity of your declaration that it is your anxious desire so to execute the trust reposed in you as to render the people of the United States prosperous and happy.

DECEMBER 9, 1799.

REPLY OF THE PRESIDENT.

UNITED STATES, *December 10, 1799.*

Gentlemen of the House of Representatives:

This very respectful address from the Representatives of the people of the United States, at their first assembly after a fresh election, under the strong impression of the public opinion and national sense, at this interesting and singular crisis of our public affairs, has excited my sensibility and receives my sincere and grateful acknowledgments.

As long as we can maintain with harmony and affection the honor of our country consistently with its peace, externally and internally, while that is attainable, or in war when that becomes necessary, assert its real independence and sovereignty, and support the constitutional energies and dignity of its Government, we may be perfectly sure, under the smiles of Divine Providence, that we shall effectually promote and extend our national interest and happiness.

The applause of the Senate and House of Representatives, so justly bestowed upon the volunteers and militia for their zealous and active cooperation with the judicial power, which has restored order and submission to the laws, as it comes with peculiar weight and propriety from the Legislature, can not fail to have an extensive and permanent effect for the support of Government upon all those ingenuous minds who receive delight from the approving and animating voice of their country.

JOHN ADAMS.

SPECIAL MESSAGES.

UNITED STATES, *December 5, 1799.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

I transmit to Congress certain documents which have relation to the communications made on Tuesday, on the subjects of the insurrection in Pennsylvania, the renewal of commerce with St. Domingo, and the mission to the French Republic.

JOHN ADAMS.

UNITED STATES, *December 6, 1799.*

Gentlemen of the Senate:

I lay before you, for your consideration, a treaty of amity and commerce between the United States and the King of Prussia, signed by their ministers on the 11th of July last.

JOHN ADAMS.

UNITED STATES, *December 19, 1799.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

The letter herewith transmitted will inform you that it has pleased Divine Providence to remove from this life our excellent fellow-citizen, George Washington, by the purity of his character and a long series of services to his country rendered illustrious through the world. It remains for an

affectionate and grateful people, in whose hearts he can never die, to pay suitable honors to his memory.

JOHN ADAMS.

MOUNT VERNON, *December 15, 1799.*

The PRESIDENT OF THE UNITED STATES.

SIR: It is with inexpressible grief that I have to announce to you the death of the great and good General Washington. He died last evening between 10 and 11 o'clock, after a short illness of about twenty hours. His disorder was an inflammatory sore throat, which proceeded from a cold of which he made but little complaint on Friday. On Saturday morning about 3 o'clock he became ill. Dr. Craik attended him in the morning, and Dr. Dick, of Alexandria, and Dr. Brown, of Port Tobacco, were soon after called in. Every medical assistance was offered, but without the desired effect. His last scene corresponded with the whole tenor of his life; not a groan nor a complaint escaped him in extreme distress. With perfect resignation and in full possession of his reason, he closed his well-spent life.

I have the honor to be, with the highest respect, sir, your most obedient and very humble servant,

TOBIAS LEAR.

The Senate, having resolved to wait on the President of the United States "to condole with him on the distressing event of the death of General George Washington," proceeded to the house of the President, when the President of the Senate, in their name, presented the address which had previously been agreed to, as follows:

The PRESIDENT OF THE UNITED STATES:

The Senate of the United States respectfully take leave, sir, to express to you their deep regret for the loss their country sustains in the death of General George Washington.

This event, so distressing to all our fellow-citizens, must be peculiarly heavy to you, who have long been associated with him in deeds of patriotism. Permit us, sir, to mingle our tears with yours. On this occasion it is manly to weep. To lose such a man at such a crisis is no common calamity to the world. Our country mourns her father. The Almighty Disposer of Human Events has taken from us our greatest benefactor and ornament. It becomes us to submit with reverence to Him who maketh darkness His pavilion.

With patriotic pride we review the life of our Washington and compare him with those of other countries who have been preeminent in fame. Ancient and modern names are diminished before him. Greatness and guilt have too often been allied, but his fame is whiter than it is brilliant. The destroyers of nations stood abashed at the majesty of his virtue. It reproved the intemperance of their ambition and darkened the splendor of victory. The scene is closed, and we are no longer anxious lest misfortune should sully his glory. He has traveled on to the end of his journey and carried with him an increasing weight of honor. He has deposited it safely, where misfortune can not tarnish it, where malice can not blast it. Favored of Heaven, he departed without exhibiting the weakness of humanity. Magnanimous in death, the darkness of the grave could not obscure his brightness.

Such was the man whom we deplore. Thanks to God, his glory is consummated. Washington yet lives on earth in his spotless example; his spirit is in Heaven.

Let his countrymen consecrate the memory of the heroic general, the patriotic statesman, and the virtuous sage. Let them teach their children never to forget that the fruit of his labors and his example are their inheritance.

SAMUEL LIVERMORE,
President of the Senate pro tempore.

DECEMBER 23, 1799.

To which the President replied as follows:

UNITED STATES, *December 23, 1799.*

Gentlemen of the Senate:

I receive with the most respectful and affectionate sentiments in this impressive address the obliging expressions of your regard for the loss our country has sustained in the death of her most esteemed, beloved, and admired citizen.

In the multitude of my thoughts and recollections on this melancholy event you will permit me only to say that I have seen him in the days of adversity, in some of the scenes of his deepest distress and most trying perplexities; I have also attended him in his highest elevation and most prosperous felicity, with uniform admiration of his wisdom, moderation, and constancy.

Among all our original associates in that memorable league of the continent in 1774, which first expressed the sovereign will of a free nation in America, he was the only one remaining in the General Government. Although with a constitution more enfeebled than his at an age when he thought it necessary to prepare for retirement, I feel myself alone bereaved of my last brother; yet I derive a strong consolation from the unanimous disposition which appears in all ages and classes to mingle their sorrows with mine on this common calamity to the world.

The life of our Washington can not suffer by comparison with those of other countries who have been most celebrated and exalted by fame. The attributes and decorations of royalty could have only served to eclipse the majesty of those virtues which made him, from being a modest citizen, a more resplendent luminary.

Misfortune, had he lived, could hereafter have sullied his glory only with those superficial minds who, believing that characters and actions are marked by success alone, rarely deserve to enjoy it. Malice could never blast his honor, and envy made him a singular exception to her universal rule. For himself, he had lived enough to life and to glory. For his fellow-citizens, if their prayers could have been answered, he would have been immortal. For me, his departure is at a most unfortunate moment. Trusting, however, in the wise and righteous dominion of Providence over the passions of men and the results of their councils and actions, as well as over their lives, nothing remains for me but humble resignation.

His example is now complete, and it will teach wisdom and virtue to magistrates, citizens, and men, not only in the present age, but in future generations as long as our history shall be read. If a Trajan found a Pliny, a Marcus Aurelius can never want biographers, eulogists, or historians.

JOHN ADAMS.

The House of Representatives having resolved unanimously to wait on the President of the United States "in condolence of this national calamity," the Speaker, attended by the House, withdrew to the house of the President, when the Speaker addressed the President as follows:

SIR: The House of Representatives, penetrated with a sense of the irreparable loss sustained by the nation in the death of that great and good man, the illustrious and beloved Washington, wait on you, sir, to express their condolence on this melancholy and distressing event.

To which the President replied as follows:

UNITED STATES, *December 19, 1799.*

Gentlemen of the House of Representatives:

I receive with great respect and affection the condolence of the House of Representatives on the melancholy and affecting event in the death of the most illustrious and beloved personage which this country ever produced. I sympathize with you, with the nation, and with good men through the world in this irreparable loss sustained by us all.

JOHN ADAMS.

UNITED STATES, *December 31, 1799.*

Gentlemen of the Senate:

I nominate Timothy Pickering, Secretary of State; Oliver Wolcott, Secretary of the Treasury, and Samuel Sitgreaves, esq., of Pennsylvania, to be commissioners to adjust and determine, with commissioners appointed under the legislative authority of the State of Georgia, all interfering claims of the United States and that State to territories situate west of the river Chatahouchee, north of the thirty-first degree of north latitude, and south of the cession made to the United States by South Carolina; and also to receive any proposals for the relinquishment or cession of the whole or any part of the other territory claimed by the State of Georgia, and out of the ordinary jurisdiction thereof, according to the law of the United States of the 7th of April, 1798.

JOHN ADAMS.

UNITED STATES, *January 6, 1800.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

In compliance with the request in one of the resolutions of Congress of the 21st of December last, I transmitted a copy of these resolutions, by my

secretary, Mr. Shaw, to Mrs. Washington, assuring her of the profound respect Congress will ever bear to her person and character, of their condolence in the late afflicting dispensation of Providence, and entreating her assent to the interment of the remains of General George Washington in the manner expressed in the first resolution. As the sentiments of that virtuous lady, not less beloved by this nation than she is at present greatly afflicted, can never be so well expressed as in her own words, I transmit to Congress her original letter.

It would be an attempt of too much delicacy to make any comments upon it, but there can be no doubt that the nation at large, as well as all the branches of the Government, will be highly gratified by any arrangement which may diminish the sacrifice she makes of her individual feelings.

JOHN ADAMS.

MOUNT VERNON, *December 31, 1799.*

The PRESIDENT OF THE UNITED STATES.

SIR: While I feel with keenest anguish the late dispensation of Divine Providence, I can not be insensible to the mournful tributes of respect and veneration which are paid to the memory of my dear deceased husband; and as his best services and most anxious wishes were always devoted to the welfare and happiness of his country, to know that they were truly appreciated and gratefully remembered affords no inconsiderable consolation.

Taught by the great example which I have so long had before me never to oppose my private wishes to the public will, I must consent to the request made by Congress, which you have had the goodness to transmit to me; and in doing this I need not, I can not, say what a sacrifice of individual feeling I make to a sense of public duty.

With grateful acknowledgments and unfeigned thanks for the personal respect and evidences of condolence expressed by Congress and yourself, I

remain, very respectfully, sir, your most obedient, humble servant,

MARTHA WASHINGTON.

UNITED STATES, *January 13, 1800.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

A report made to me on the 5th of this month by the Secretary of War contains various matters in which the honor and safety of the nation are deeply interested. I transmit it, therefore, to Congress and recommend it to their serious consideration.

JOHN ADAMS.

UNITED STATES, *January 14, 1800.*

Gentlemen of the House of Representatives:

As the inclosed letter from a member of your House received by me in the night of Saturday, the 11th instant, relates to the privileges of the House, which, in my opinion, ought to be inquired into in the House itself, if anywhere, I have thought proper to submit the whole letter and its tendencies to your consideration without any other comments on its matter or style; but as no gross impropriety of conduct on the part of persons holding commissions in the Army or Navy of the United States ought to pass without due animadversion, I have directed the Secretary of War and the Secretary of the Navy to investigate the conduct complained of and to report to me without delay such a statement of facts as will enable me to decide on the course which duty and justice shall appear to prescribe.

JOHN ADAMS.

UNITED STATES, *January 23, 1800.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

I transmit to Congress for the information of the members a report of the Secretary of State of the 9th instant, a letter from Matthew Clarkson, esq., to him of the 2d, and a list of the claims adjusted by the commissioners under the twenty-first article of our treaty with Spain.

JOHN ADAMS.

UNITED STATES, *February 14, 1800.*

Gentlemen of the House of Representatives:

I transmit herewith a copy of the laws enacted by the governor and judges of the Mississippi Territory, for the inspection of Congress. There being but this one copy, I must request the House, when they have made the requisite examination, to send it to the Senate.

JOHN ADAMS.

PROCLAMATIONS.

[From C. F. Adams's Works of John Adams, Vol. IX, p. 177.]

PROCLAMATION.

MAY 9, 1800.

Whereas by an act of Congress of the United States passed the 27th day of February last, entitled "An act further to suspend the commercial intercourse between the United States and France and the dependencies thereof," it is enacted that at any time after the passing of the said act it shall be lawful for the President of the United States, by his order, to remit and discontinue for the time being, whenever he shall deem it expedient and for the interest of the United States, all or any of the restraints and prohibitions imposed by the said act in respect to the territories of the French Republic, or to any island, port, or place belonging to the said Republic with which, in his opinion, a commercial intercourse may be safely renewed, and to make proclamation thereof accordingly; and it is also thereby further enacted that the whole of the island of Hispaniola shall, for the purposes of the said act, be considered as a dependence of the French Republic; and

Whereas the circumstances of certain ports and places of the said island not comprised in the proclamation of the 26th day of June, 1799, are such that I deem it expedient and for the interest of the United States to remit and discontinue the restraints and prohibitions imposed by the said act in respect to those ports and places in order that a commercial intercourse with the same may be renewed:

Therefore I, John Adams, President of the United States, by virtue of the powers vested in me as aforesaid, do hereby remit and discontinue the restraints and prohibitions imposed by the act aforesaid in respect to all the ports and places in the said island of Hispaniola from Monte Christi on the north, round by the eastern end thereof as far as the port of Jacmel on the

south, inclusively. And it shall henceforth be lawful for vessels of the United States to enter and trade at any of the said ports and places, provided it be done with the consent of the Government of St. Domingo. And for this purpose it is hereby required that such vessels first enter the port of Cape Francois or Port Republicain, in the said island, and there obtain the passports of the said Government, which shall also be signed by the consul-general or consul of the United States residing at Cape François or Port Republicain, permitting such vessel to go thence to the other ports and places of the said island hereinbefore mentioned and described. Of all which the collectors of the customs and all other officers and citizens of the United States are to take due notice and govern themselves.

In testimony, etc.

JOHN ADAMS.

[From Annals of Congress, Seventh Congress, second session, 1552.]

PROCLAMATION.

BY JOHN ADAMS, PRESIDENT OF THE UNITED STATES OF AMERICA.

Whereas the late wicked and treasonable insurrection against the just authority of the United States of sundry persons in the counties of Northampton, Montgomery, and Bucks, in the State of Pennsylvania, in the year 1799, having been speedily suppressed without any of the calamities usually attending rebellion; whereupon peace, order, and submission to the laws of the United States were restored in the aforesaid counties, and the ignorant, misguided, and misinformed in the counties have returned to a proper sense of their duty, whereby it is become unnecessary for the public good that any future prosecutions should be commenced or carried on against any person or persons by reason of their being concerned in the said insurrection:

Wherefore be it known that I, John Adams, President of the United States of America, have granted, and by these presents do grant, a full, free, and absolute pardon to all and every person or persons concerned in the said insurrection, excepting as hereinafter excepted, of all treasons, misprisions of treason, felonies, misdemeanors, and other crimes by them respectively done or committed against the United States in either of the said counties before the 12th day of March, in the year 1799, excepting and excluding therefrom every person who now standeth indicted or convicted of any treason, misprision of treason, or other offense against the United States, whereby remedying and releasing unto all persons, except as before excepted, all pains and penalties incurred, or supposed to be incurred, for or on account of the premises.

[SEAL.]

Given under my hand and the seal of the United States of America, at the city of Philadelphia, this 21st day of May, A.D. 1800, and of the Independence of the said States the twenty-fourth.

JOHN ADAMS.

**BY JOHN ADAMS, PRESIDENT OF THE UNITED STATES
OF AMERICA.**

A PROCLAMATION.

Whereas by an act of the Congress of the United States passed on the 27th day of February last, entitled "An act further to suspend the commercial intercourse between the United States and France and the dependencies thereof," it is enacted "that at any time after the passing of the said act it shall be lawful for the President of the United States, by his order, to remit and discontinue for the time being, whenever he shall deem it expedient and for the interest of the United States, all or any of the restraints and prohibitions imposed by the said act in respect to the

territories of the French Republic, or to any island, port, or place belonging to the said Republic with which, in his opinion, a commercial intercourse may be safely renewed, and to make proclamation thereof accordingly;" and it is also thereby further enacted that the whole of the island of Hispaniola shall, for the purposes of the said act, be considered as a dependence of the French Republic; and

Whereas the circumstances of the said islands are such that, in my opinion, a commercial intercourse may safely be renewed with every part thereof, under the limitations and restrictions hereinafter mentioned:

Therefore I, John Adams, President of the United States, by virtue of the powers vested in me as aforesaid, do hereby remit and discontinue the restraints and prohibitions imposed by the act aforesaid in respect to every part of the said island, so that it shall be lawful for vessels of the United States to trade at any of the ports and places thereof, provided it be done with the consent of the Government of St. Domingo; and for this purpose it is hereby required that such vessels first clear for and enter the port of Cape Français or Port Republicain, in the said island, and there obtain the passports of the said Government, which shall also be signed by the consul-general of the United States, or their consul residing at Cape Français, or their consul residing at Port Republicain, permitting such vessels to go thence to the other ports and places of the said island. Of all which the collectors of the customs and all other officers and citizens of the United States are to take due notice and govern themselves accordingly.

[SEAL.]

Given under my hand and the seal of the United States of America, at the city of Washington, this 6th day of September, A.D. 1800, and of the Independence of the said States the twenty-fifth.

JOHN ADAMS.

By the President:
J. MARSHALL,
Secretary of State.

FOURTH ANNUAL ADDRESS.

UNITED STATES, *November 22, 1800.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

Immediately after the adjournment of Congress at their last session in Philadelphia I gave directions, in compliance with the laws, for the removal of the public offices, records, and property. These directions have been executed, and the public officers have since resided and conducted the ordinary business of the Government in this place.

I congratulate the people of the United States on the assembling of Congress at the permanent seat of their Government, and I congratulate you, gentlemen, on the prospect of a residence not to be changed. Although there is cause to apprehend that accommodations are not now so complete as might be wished, yet there is great reason to believe that this inconvenience will cease with the present session.

It would be unbecoming the representatives of this nation to assemble for the first time in this solemn temple without looking up to the Supreme Ruler of the Universe and imploring His blessing.

May this territory be the residence of virtue and happiness! In this city may that piety and virtue, that wisdom and magnanimity, that constancy and self-government, which adorned the great character whose name it bears be forever held in veneration! Here and throughout our country may simple manners, pure morals, and true religion flourish forever!

It is with you, gentlemen, to consider whether the local powers over the District of Columbia vested by the Constitution in the Congress of the United States shall be immediately exercised. If in your opinion this important trust ought now to be executed, you can not fail while performing it to take into view the future probable situation of the territory for the happiness of which you are about to provide. You will consider it as the capital of a great nation advancing with unexampled rapidity in arts, in

commerce, in wealth, and in population, and possessing within itself those energies and resources which, if not thrown away or lamentably misdirected, will secure to it a long course of prosperity and self-government.

In compliance with a law of the last session of Congress, the officers and soldiers of the temporary army have been discharged. It affords real pleasure to recollect the honorable testimony they gave of the patriotic motives which brought them into the service of their country, by the readiness and regularity with which they returned to the station of private citizens.

It is in every point of view of such primary importance to carry the laws into prompt and faithful execution, and to render that part of the administration of justice which the Constitution and laws devolve on the Federal courts as convenient to the people as may consist with their present circumstances, that I can not omit once more to recommend to your serious consideration the judiciary system of the United States. No subject is more interesting than this to the public happiness, and to none can those improvements which may have been suggested by experience be more beneficially applied.

A treaty of amity and commerce with the King of Prussia has been concluded and ratified. The ratifications have been exchanged, and I have directed the treaty to be promulgated by proclamation.

The difficulties which suspended the execution of the sixth article of our treaty of amity, commerce, and navigation with Great Britain have not yet been removed. The negotiation on this subject is still depending. As it must be for the interest and honor of both nations to adjust this difference with good faith, I indulge confidently the expectation that the sincere endeavors of the Government of the United States to bring it to an amicable termination will not be disappointed.

The envoys extraordinary and ministers plenipotentiary from the United States to France were received by the First Consul with the respect due to their character, and three persons with equal powers were appointed to treat with them. Although at the date of the last official intelligence the negotiation had not terminated, yet it is to be hoped that our efforts to effect

an accommodation will at length meet with a success proportioned to the sincerity with which they have been so often repeated.

While our best endeavors for the preservation of harmony with all nations will continue to be used, the experience of the world and our own experience admonish us of the insecurity of trusting too confidently to their success. We can not, without committing a dangerous imprudence, abandon those measures of self-protection which are adapted to our situation and to which, notwithstanding our pacific policy, the violence and injustice of others may again compel us to resort. While our vast extent of seacoast, the commercial and agricultural habits of our people, the great capital they will continue to trust on the ocean, suggest the system of defense which will be most beneficial to ourselves, our distance from Europe and our resources for maritime strength will enable us to employ it with effect. Seasonable and systematic arrangements, so far as our resources will justify, for a navy adapted to defensive war, and which may in case of necessity be quickly brought into use, seem to be as much recommended by a wise and true economy as by a just regard for our future tranquillity, for the safety of our shores, and for the protection of our property committed to the ocean.

The present Navy of the United States, called suddenly into existence by a great national exigency, has raised us in our own esteem, and by the protection afforded to our commerce has effected to the extent of our expectations the objects for which it was created.

In connection with a navy ought to be contemplated the fortification of some of our principal seaports and harbors. A variety of considerations, which will readily suggest themselves, urge an attention to this measure of precaution. To give security to our principal ports considerable sums have already been expended, but the works remain incomplete. It is for Congress to determine whether additional appropriations shall be made in order to render competent to the intended purposes the fortifications which have been commenced.

The manufacture of arms within the United States still invites the attention of the National Legislature. At a considerable expense to the public this manufacture has been brought to such a state of maturity as, with

continued encouragement, will supersede the necessity of future importations from foreign countries.

Gentlemen of the House of Representatives:

I shall direct the estimates of the appropriations necessary for the ensuing year, together with an account of the public revenue and expenditure to a late period, to be laid before you. I observe with much satisfaction that the product of the revenue during the present year has been more considerable than during any former equal period. This result affords conclusive evidence of the great resources of this country and of the wisdom and efficiency of the measures which have been adopted by Congress for the protection of commerce and preservation of public credit.

Gentlemen of the Senate and Gentlemen of the House of Representatives:

As one of the grand community of nations, our attention is irresistibly drawn to the important scenes which surround us. If they have exhibited an uncommon portion of calamity, it is the province of humanity to deplore and of wisdom to avoid the causes which may have produced it. If, turning our eyes homeward, we find reason to rejoice at the prospect which presents itself; if we perceive the interior of our country prosperous, free, and happy; if all enjoy in safety, under the protection of laws emanating only from the general will, the fruits of their own labor, we ought to fortify and cling to those institutions which have been the source of such real felicity and resist with unabating perseverance the progress of those dangerous innovations which may diminish their influence.

To your patriotism, gentlemen, has been confided the honorable duty of guarding the public interests; and while the past is to your country a sure pledge that it will be faithfully discharged, permit me to assure you that your labors to promote the general happiness will receive from me the most zealous cooperation.

JOHN ADAMS.

ADDRESS OF THE SENATE TO JOHN ADAMS, PRESIDENT OF THE UNITED STATES.

The PRESIDENT OF THE UNITED STATES.

SIR: Impressed with the important truth that the hearts of rulers and people are in the hand of the Almighty, the Senate of the United States most cordially join in your invocations for appropriate blessings upon the Government and people of this Union.

We meet you, sir, and the other branch of the National Legislature in the city which is honored by the name of our late hero and sage, the illustrious Washington, with sensations and emotions which exceed our power of description.

While we congratulate ourselves on the convention of the Legislature at the permanent seat of Government, and ardently hope that permanence and stability may be communicated as well to the Government itself as to its seat, our minds are irresistibly led to deplore the death of him who bore so honorable and efficient a part in the establishment of both. Great indeed would have been our gratification if his sum of earthly happiness had been completed by seeing the Government thus peaceably convened at this place; but we derive consolation from a belief that the moment in which we were destined to experience the loss we deplore was fixed by that Being whose counsels can not err, and from a hope that since in this seat of Government, which bears his name, his earthly remains will be deposited, the members of Congress, and all who inhabit the city, with these memorials before them, will retain his virtues in lively recollection, and make his patriotism, morals, and piety models for imitation. And permit us to add, sir, that it is not among the least of our consolations that you, who have been his companion and friend from the dawning of our national existence, and trained in the same school of exertion to effect our independence, are still preserved by a gracious Providence in health and activity to exercise the functions of Chief Magistrate.

The question whether the local powers over the District of Columbia, vested by the Constitution in the Congress of the United States, shall be immediately exercised is of great importance, and in deliberating upon it we

shall naturally be led to weigh the attending circumstances and every probable consequence of the measures which may be proposed.

The several subjects for legislative consideration contained in your speech to both Houses of Congress shall receive from the Senate all the attention which they can give, when contemplating those objects, both in respect to their national importance and the additional weight that is given them by your recommendation.

We deprecate with you, sir, all spirit of innovation from whatever quarter it may arise, which may impair the sacred bond that connects the different parts of this Empire, and we trust that, under the protection of Divine Providence the wisdom and virtue of the citizens of the United States will deliver our national compact unimpaired to a grateful posterity.

From past experience it is impossible for the Senate of the United States to doubt of your zealous cooperation with the Legislature in every effort to promote the general happiness and tranquillity of the Union.

Accept, sir, our warmest wishes for your health and happiness.

JOHN E. HOWARD,
President of the Senate pro tempore.

NOVEMBER 25, 1800.

REPLY OF THE PRESIDENT.

CITY OF WASHINGTON, *November 26, 1800.*

Mr. President and Gentlemen of the Senate:

For this excellent address, so respectful to the memory of my illustrious predecessor, which I receive from the Senate of the United States at this time and in this place with peculiar satisfaction, I pray you to accept of my unfeigned acknowledgments. With you I ardently hope that permanence and

stability will be communicated as well to the Government itself as to its beautiful and commodious seat. With you I deplore the death of that hero and sage who bore so honorable and efficient a part in the establishment of both. Great indeed would have been my gratification if his sum of earthly happiness had been completed by seeing the Government thus peaceably convened at this place, himself at its head; but while we submit to the decisions of Heaven, whose councils are inscrutable to us, we can not but hope that the members of Congress, the officers of Government, and all who inhabit the city or the country will retain his virtues in lively recollection and make his patriotism, morals, and piety models for imitation.

I thank you, gentlemen, for your assurance that the several subjects for legislative consideration recommended in my communication to both Houses shall receive from the Senate a deliberate and candid attention.

With you, gentlemen, I sincerely deprecate all spirit of innovation which may weaken the sacred bond that connects the different parts of this nation and Government, and with you I trust that under the protection of Divine Providence the wisdom and virtue of our citizens will deliver our national compact unimpaired to a free, prosperous, happy, and grateful posterity. To this end it is my fervent prayer that in this city the foundations of wisdom may be always opened and the streams of eloquence forever flow. Here may the youth of this extensive country forever look up without disappointment, not only to the monuments and memorials of the dead, but to the examples of the living, in the members of Congress and officers of Government, for finished models of all those virtues, graces, talents, and accomplishments which constitute the dignity of human nature and lay the only foundation for the prosperity or duration of empires.

JOHN ADAMS.

**ADDRESS OF THE HOUSE OF REPRESENTATIVES TO
JOHN ADAMS, PRESIDENT OF THE UNITED STATES.**

JOHN ADAMS,
President of the United States.

SIR: The House of Representatives have received with great respect the communication which you have been pleased to make to the two Houses of Congress at the commencement of the present session.

The final establishment of the seat of National Government, which has now taken place, within the District of Columbia is an event of no small importance in the political transactions of our country, and we cordially unite our wishes with yours that this Territory may be the residence of happiness and virtue.

Nor can we on this occasion omit to express a hope that the spirit which animated the great founder of this city may descend to future generations, and that the wisdom, magnanimity, and steadiness which marked the events of his public life may be imitated in all succeeding ages.

A consideration of those powers which have been vested in Congress over the District of Columbia will not escape our attention, nor shall we forget that in exercising these powers a regard must be had to those events which will necessarily attend the capital of America.

The cheerfulness and regularity with which the officers and soldiers of the temporary army have returned to the condition of private citizens is a testimony clear and conclusive of the purity of those motives which induced them to engage in the public service, and will remain a proof on all future occasions that an army of soldiers drawn from the citizens of our country deserve our confidence and respect.

No subject can be more important than that of the judiciary, which you have again recommended to our consideration, and it shall receive our early and deliberate attention.

The Constitution of the United States having confided the management of our foreign negotiations to the control of the Executive power, we cheerfully submit to its decisions on this important subject; and in respect to the negotiations now pending with France, we sincerely hope that the final result may prove as fortunate to our country as the most ardent mind can wish.

So long as a predatory war is carried on against our commerce we should sacrifice the interests and disappoint the expectations of our constituents should we for a moment relax that system of maritime defense which has resulted in such beneficial effects. At this period it is confidently believed that few persons can be found within the United States who do not admit that a navy, well organized, must constitute the natural and efficient defense of this country against all foreign hostility.

The progress which has been made in the manufacture of arms leaves no doubt that the public patronage has already placed this country beyond all necessary dependence on foreign markets for an article so indispensable for defense, and gives us assurances that, under the encouragement which Government will continue to extend to this important object, we shall soon rival foreign countries not only in the number but in the quality of arms completed from our own manufactories.

Few events could have been more pleasing to our constituents than that great and rapid increase of revenue which has arisen from permanent taxes. Whilst this event explains the great and increasing resources of our country, it carries along with it a proof which can not be resisted that those measures of maritime defense which were calculated to meet our enemy upon the ocean, and which have produced such extensive protection to our commerce, were founded in wisdom and policy. The mind must, in our opinion, be insensible to the plainest truths which can not discern the elevated ground on which this policy has placed our country. That national spirit which alone could vindicate our common rights has been roused, and those latent energies which had not been fully known were unfolded and brought into view, and our fellow-citizens were prepared to meet every event which national honor or national security could render necessary. Nor have its effects been much less important in other respects.

Whilst many of the nations of the earth have been impoverished and depopulated by internal commotions and national contests, our internal peace has not been materially impaired; our commerce has extended, under the protection of our infant Navy, to every part of the globe; wealth has flowed without intermission into our seaports, and the labors of the husbandman have been rewarded by a ready market for the productions of the soil.

Be assured, sir, that the various and important subjects recommended to our consideration shall receive our early and deliberate attention; and, confident of your cooperation in every measure which may be calculated to promote the general interest, we shall endeavor on our part to testify by our industry and dispatch the zeal and sincerity with which we regard the public good

NOVEMBER 26, 1800.

REPLY OF THE PRESIDENT.

WASHINGTON, *November 27, 1800.*

Mr. Speaker and Gentlemen of the House of Representatives:

Compelled by the habits of a long life, as well as by all the principles of society and government which I could ever understand and believe, to consider the great body of the people as the source of all legitimate authority no less than of all efficient power, it is impossible for me to receive this address from the immediate Representatives of the American people at this time and in this place without emotions which it would be improper to express if any language could convey them.

May the spirit which animated the great founder of this city descend to future generations, and may the wisdom, magnanimity, and steadiness which marked the events of his public life be imitated in all succeeding ages.

I thank you, gentlemen, for your assurance that the judiciary system shall receive your deliberate attention.

With you, gentlemen, I sincerely hope that the final result of the negotiations now pending with France may prove as fortunate to our country as they have been commenced with sincerity and prosecuted with deliberation and caution. With you I cordially agree that so long as a predatory war is carried on against our commerce we should sacrifice the

interests and disappoint the expectations of our constituents should we for a moment relax that system of maritime defense which has resulted in such beneficial effects. With you I confidently believe that few persons can be found within the United States who do not admit that a navy, well organized, must constitute the natural and efficient defense of this country against all foreign hostility.

Those who recollect the distress and danger to this country in former periods from the want of arms must exult in the assurance from their Representatives that we shall soon rival foreign countries not only in the number but in the quality of arms completed from our own manufactories.

With you, gentlemen, I fully agree that the great increase of revenue is a proof that the measures of maritime defense were founded in wisdom. This policy has raised us in the esteem of foreign nations. That national spirit and those latent energies which had not been and are not yet fully known to any were not entirely forgotten by those who had lived long enough to see in former times their operation and some of their effects. Our fellow-citizens were undoubtedly prepared to meet every event which national honor or national security could render necessary. These, it is to be hoped, are secured at the cheapest and easiest rate; if not, they will be secured at more expense.

I thank you, gentlemen, for your assurance that the various subjects recommended to your consideration shall receive your deliberate attention. No further evidence is wanting to convince me of the zeal and sincerity with which the House of Representatives regard the public good.

I pray you, gentlemen, to accept of my best wishes for your health and happiness.

JOHN ADAMS.

SPECIAL MESSAGES.

UNITED STATES, *December 15, 1800.*

Gentlemen of the Senate:

I transmit to the Senate, for their consideration and decision, a convention, both in English and French, between the United States of America and the French Republic, signed at Paris on the 30th day of September last by the respective plenipotentiaries of the two powers. I also transmit to the Senate three manuscript volumes containing the journal of our envoys.

JOHN ADAMS.

UNITED STATES, *January 7, 1801.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

I transmit to both Houses of Congress, for their information and consideration, copies of laws enacted by the governor and judges of the Mississippi Territory from the 30th of June until the 31st of December, A.D. 1799.

JOHN ADAMS.

UNITED STATES, *January 17, 1801.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

I have received from Elias Boudinot, esq., Director of the Mint of the United States, a report of the 2d of January, representing the state of it, together with an abstract of the coins struck at the Mint from the 1st of January to the 31st of December, 1800; an abstract of the expenditures of the Mint from the 1st of January to the 31st of December, inclusive; a statement of gain on copper coined at the Mint from the 1st of January to the 31st of December, 1800, and a certificate from Joseph Richardson, assayer of the Mint, ascertaining the value of Spanish milled doubloons in proportion to the gold coins of the United States to be no more than 84 cents and $424/500$ parts of a cent for 1 pennyweight, or 28 grains and $24256/84848$ parts of a grain to one dollar. These papers I transmit to Congress for their consideration,

JOHN ADAMS.

UNITED STATES, *January 21, 1801.*

Gentlemen of the Senate:

In compliance with your request, signified in your resolution of the 20th day of this month, I transmit you a report made to me by the Secretary of State on the same day, a letter of our late envoys to him of the 4th of October last, an extract of a letter from our minister plenipotentiary in London to him of the 22d of November last, and an extract of another letter from the minister to the Secretary of the 31st of October last.

The reasoning in the letter of our late envoys to France is so fully supported by the writers on the law of nations, particularly by Vattel, as well as by his great masters, Grotius and Puffendorf, that nothing is left to be desired to settle the point that if there be a collision between two treaties made with two different powers the more ancient has the advantage, for no engagement contrary to it can be entered into in the treaty afterwards made; and if this last be found in any case incompatible with the more ancient one its execution is considered as impossible, because the person promising had not the power of acting contrary to his antecedent engagement. Although our right is very clear to negotiate treaties according to our own ideas of

right and justice, honor and good faith, yet it must always be a satisfaction to know that the judgment of other nations with whom we have connection coincides with ours, and that we have no reason to apprehend that any disagreeable questions and discussions are likely to arise. The letters from Mr. King will therefore be read by the Senate with particular satisfaction.

The inconveniences to public officers and the mischiefs to the public arising from the publication of the dispatches of ministers abroad are so numerous and so obvious that I request of the Senate that these papers, especially the letters from Mr. King, be considered in close confidence.

JOHN ADAMS.

UNITED STATES, *January 30, 1801.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

I transmit to Congress for their consideration a letter from William Thornton, Alexander White, and William Cranch, esquires, commissioners of the city of Washington, with a representation of the affairs of the city made by them to the President of the United States, dated 28th of January, 1801, accompanied with a series of documents marked from A to H, inclusively.

JOHN ADAMS.

UNITED STATES, *February 16, 1801.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

I wish to know the pleasure of Congress and request their direction concerning the disposition of the property of the United States now in my possession; whether I shall deliver it into the hands of the heads of Departments, or of the commissioners of the city of Washington, or of a

committee of Congress, or to any other persons Congress may appoint, to be delivered into the hands of my successor, or whether I shall present it myself to the President of the United States on the 4th of March next. Any of these modes will be agreeable to me.

JOHN ADAMS.

UNITED STATES, *February 20, 1801.*

Gentlemen of the Senate and Gentlemen of the House of Representatives:

I transmit to Congress a report received this morning from Elias Boudinot, esq., Director of the Mint, dated February 13, 1801, which will require the attention and decision of Congress before the close of the session.

JOHN ADAMS.

UNITED STATES, *March 2, 1801.*

Gentlemen of the Senate:

I have considered the advice and consent of the Senate to the ratification of the convention with France under certain conditions. Although it would have been more conformable to my own judgment and inclination to have agreed to that instrument unconditionally, yet as in this point I found I had the misfortune to differ in opinion from so high a constitutional authority as the Senate, I judged it more consistent with the honor and interest of the United States to ratify it under the conditions prescribed than not at all. I accordingly nominated Mr. Bayard minister plenipotentiary to the French Republic, that he might proceed without delay to Paris to negotiate the exchange of ratifications; but as that gentleman has declined his appointment, for reasons equally applicable to every other person suitable

for the service, I shall take no further measures relative to this business, and leave the convention, with all the documents, in the Office of State, that my successor may proceed with them according to his wisdom.

JOHN ADAMS.

PROCLAMATION.

JANUARY 30, 1801.

To the Senators of the United States, respectively.

SIR: It appearing to me proper and necessary for the public service that the Senate of the United States should be convened on Wednesday, the 4th of March next, you are desired to attend in the Chamber of the Senate on that day, at 10 o'clock in the forenoon, to receive and act upon any communications which the President of the United States may then lay before you touching their interests, and to do and consider all other things which may be proper and necessary for the public service for the Senate to do and consider.

JOHN ADAMS,
President of the United States.

*** END OF THE PROJECT GUTENBERG EBOOK A COMPILATION
OF THE MESSAGES AND PAPERS OF THE PRESIDENTS. VOLUME
1, PART 2: JOHN ADAMS ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project GutenbergTM License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.